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***Editor's note(s)**– Tables listing the location, length and width of public and private streets and tables listing the former names of certain streets in the City of Somerville are listed in APPENDIX C.

Charter reference(s)– Power of city council to lay out, locate, alter, etc., streets, § 17(3); department of public works, § 40; powers and duties of commissioner of public works, § 40A; security required for excavation of streets and sidewalks, § 42.

Cross reference(s)– Emergency management, Ch. 4; burning in public places, § 5-1; housing, Ch. 7; tables for vendors on public streets and sidewalks, § 8-8; opening and repairing drains and sewers, sidewalk repair, § 8-41 et seq.; licenses for nonprofit organizations, § 8-91 et seq.; musicians and street performers, § 8-121 et seq.; door-to-door solicitors and canvassers, § 8-146 et seq.; marathons, walkathons and other endurance exhibitions, § 8-186 et seq.; alcoholic beverages in public areas, § 9-1; vandalism and damage to public property, § 9-46; graffiti and damage to public property, § 9-47; signs and posters on public property, § 9-48; weeds and grass on sidewalks, § 9-56; repairing and storing motor vehicles on public and private property, § 9-57; public works, Ch. 11; trash and litter removal from sidewalks, § 11-43; trash and litter removal from storefronts and businesses, § 11-44; taxicabs, taxi stands and taxi operators, Ch. 13; list of city streets, App. C.

State law reference(s)– Jurisdiction of cities over highways, M.G.L.A. c. 82, § 17 et seq.; regulations relative to sidewalks, M.G.L.A. c. 83, § 25 et seq.; regulations relative to public ways generally, M.G.L.A. c. 85; authority to regulate use of ways for certain purposes, M.G.L.A. c. 85, § 10.

ARTICLE I. IN GENERAL

Sec. 12-1. Street names.

No street when laid out shall be given the same name as that by which any other street, public or private, is known in this city.

(Code 1963, § 8-9)

Sec. 12-2. Water run-off and washing cars.

(a) No person shall suffer his or her building or awning or other projection thereon to shed water on any sidewalk or street to the injury or inconvenience of travelers.

(b) No person shall wash or clean an automobile or horse in any street, or cause it to be there washed or cleaned, and no person using water for washing automobiles or for other purposes shall so use it, or cause or allow it so to be used, thrown, discharged, or so to escape, as to flow or collect upon any street, or to flow upon or across the surface of any sidewalk.

(Code 1963, § 12-3)

Cross reference(s)– Interference with water system, § 11-121 et seq.

Sec. 12-3. Littering and dumping trash and rubbish on public property.

No person, unless thereto duly authorized by ordinance, or by permission of the city council or of the commissioner of public works, shall drop, place, or throw and allow to remain, or cause to be dropped, placed, or thrown, and allowed to remain, in or on any catch basin, street, sidewalk, park, or other public place; any ashes, cinders, glass, crockery, scrap iron, nails, tacks, stones, gravel, sand, paper, sawdust, wood, lumber or other building material, pole, post, shrub or tree or trimmings thereof, wire, hair, manure, card, handbill, shavings, dirt, earth, brine, salt or mixture of salt, oyster shell, clam shell, lobster shell, fish, fruit, vegetable, meat, or any other rubbish or filth or offensive matter or substance, liquid or solid or any kind whatsoever.

(Code 1963, § 12-4)

Cross reference(s)– Collection of ashes and offal, § 11-30; household trash and rubbish collection, § 11-31; rubbish or trash picking, collecting or disturbing, § 11-32; disturbing trash containers before collection, § 11-41; placing trash in public trash containers, § 11-42; temporary obstructions on streets and sidewalks, § 12-12.

Effective on: 4/16/2021

Sec. 12-4. Leafleting and handbills.

(a) No person, unless thereto duly authorized by law or ordinance, shall drop, place or throw and allow to remain, or cause to be dropped, placed or thrown and allowed to remain, on a step, piazza or other place, from which it is likely to be blown upon a street or public park, any card, handbill, circular or other paper, except a newspaper or magazine.

(b) Nothing contained in section 12-3 or this section shall be construed to deny to anyone the right to, nor to require authorization or permission to, distribute handbills or other printed matter upon any street, sidewalk, park or other public place.

(Code 1963, §§ 12-4, 12-5)

Cross reference(s)– Signs and posters on public property, § 9-48.

Sec. 12-5. Blocking sidewalks.

No person shall place or cause to be placed upon the footpath or sidewalk of a street any wood, coal or other article for more than two hours, or suffer it to remain there more than one hour after being notified to remove the same by the superintendent of highways or a police officer of the city.

(Code 1963, § 12-6)

Sec. 12-6. Gaming and games of chance.

No person shall expose, in any street or other public place, any table or device of any kind by or upon which any game of hazard or chance to be played; nor shall any person play any such game at such table or device in any street or other public place.

(Code 1963, § 12-7)

State law reference(s)– Gaming generally, M.G.L.A. c. 137.

Sec. 12-7. Vehicles on sidewalks.

(a) No person shall cause or allow a horse or vehicle to be driven over or across a sidewalk in any public street, nor shall any person drive a horse or vehicle over or across any sidewalk in any public street; provided, however, that this section shall not prohibit any person from driving a vehicle over a private driveway now existing or hereafter laid out over a public sidewalk by authority of the commissioner of public works or by order of the city council; nor shall it prohibit any person acting under any permit issued by the commissioner of public works.

(b) The commissioner of public works for good cause shown may issue a permit to any person to drive a vehicle across a public sidewalk where no private driveway exists, but such permit or renewals thereof shall state the purpose, duration of and conditions under which the permit is issued.

(Code 1963, §§ 11-13, 12-9)

Sec. 12-8. Snow and ice on sidewalks.

(a) A person, including an owner, occupant, tenant, or agent, in charge of land or a building may not place snow or ice, or allow it to remain, on an abutting sidewalk for more than six hours between sunrise and sunset following the conclusion of a weather event, or as otherwise extended by the city in its discretion. The person shall clear the sidewalk to its surface, or treat it with sand or other suitable material where clearing to the surface is impractical, to provide a path of travel with a minimum width of thirty-six inches.

    (1) An owner, commercial occupant, commercial tenant, or person in charge of land containing a building with exclusively commercial units or a building with ground floor commercial units abutting an accessible curb ramp shall also clear the curb ramp to provide a path of travel with clear and direct access to the crosswalk through the curb ramp in accordance with the standard established in subsection (a).

(b) Whoever violates any of the provisions of subsection (a) of this section shall be fined in accordance with section 1-11.

(c) Upon neglect or violation of the duty imposed by the provisions of this section such duty may be performed by the superintendent of highways at the expense of the person liable to perform the same and the city may place a lien against the property for expenses incurred.

(d) The city treasurer with the approval of the mayor may in civil actions prosecute and adjust claims inuring to the city under the provisions of this section.

(Code 1963, § 12-10; Ord. No. 2008-03, 3-13-2008; Ord. No. 2014-12, 12-11-2014; Ord. No. 2015-03, 3-26-2015; Ord. No. 2025-25, 12-11-2025)

State law reference(s)– Removal of snow from sidewalks, M.G.L.A. c. 40, § 21(3), (4); ordinances authorized, M.G.L.A. c. 85, § 5.

Effective on: 12/11/2025

Sec. 12-9. Shoveling snow on streets.

(a) No owner, tenant or occupant of land or a building, or any agent thereof, in this city shall cause any snow or ice from said land or building to be placed in any public way in this city unless said snow or ice is broken up and spread evenly, to a thickness of no more than three inches, during daylight hours, when the mean temperature for that day is above 40 degrees Fahrenheit.

(b) Whoever violates any of the provisions of subsection (a) of this section shall be fined in accordance with section 1-11.

(Code 1963, § 8-20; Ord. No. 1990-6, 3-22-90)

Sec. 12-10. Coasting on streets with a sled.

No person shall coast with a sled in any street or other public place, except as authorized by the city council.

(Code 1963, § 12-11)

State law reference(s)– Authority to regulate, M.G.L.A. c. 85, § 10A.

Sec. 12-11. Loitering on sidewalks.

No person shall saunter or loiter for more than five minutes upon a sidewalk in any street after being directed by a police officer to move on, nor shall any person willfully or negligently obstruct the free passage of foot travelers on such sidewalk, nor shall any person congregate with others and loaf upon any such sidewalk or in any street or other public place of the city.

(Code 1963, § 12-12)

Sec. 12-12. Temporary obstructions on streets and sidewalks.

No person shall suffer his or her fuel, dirt, ashes, or other rubbish, or any other material to remain on any sidewalk or any street during any part of the nighttime, or in any other manner obstruct any sidewalk or street crossing, without a permit from the commissioner of public works.

(Code 1963, § 12-26)

Cross reference(s)– Collection of ashes and offal, § 11-30; household trash and rubbish collection, § 11-31; rubbish or trash picking, collecting or disturbing, § 11-32; disturbing trash containers before collection, § 11-41; placing trash in public trash containers, § 11-42; littering and dumping trash and rubbish on public property, § 12-3; obstacles in streets or sidewalks at night, § 12-18.

Effective on: 4/16/2021

Sec. 12-13. Playing ball on streets.

No person shall play baseball or football in any public street; and no person shall throw a ball, stone, or other missile, to the annoyance or intimidation of any traveler, or of any abutter on a public street.

(Code 1963, § 12-22)

Sec. 12-14. Signs, awnings, outdoor seating and other items on or over streets and sidewalks.

No person shall, except in accordance with a permit from the city council or as otherwise duly authorized, place, make or maintain any gate, table, stall, booth or other erection, signs, goods, wares, outdoor seating, doorstep, portico, porch, bow window, entrance or passageway to a cellar or basement, opening or area for admitting light or air, or any other article or structure on any street or sidewalk, or maintain such articles or structures in such a manner as to project or swing into or over any street or sidewalk. The licensing commission shall hereby be duly authorized to permit an establishment licensed by said commission to place outdoor seating and accessories thereto on the public way adjacent to said establishment. Any permit granted under this section for the purpose of placing and maintaining adjacent to a licensed establishment outdoor seating on a public sidewalk shall expire on the 31st day of December in the year in which it is granted. No permit shall be granted unless the petitioner files with the city clerk a bond in the sum of $5,000.00 to indemnify and save the city harmless from all liability and loss arising out of such permit or, in the alternative, designate the city as an additional insured on the petitioner's general liability, property and casualty insurance coverage. However, with the written permission of the mayor, in accordance with the terms of such permission, any person may suspend the flag of the United States of America or the flag of any country allied with the United States of America or any flag indicating military or naval services of the United States of America over any street or sidewalk.

(Code 1963, § 11-7; Ord. No. 2001-08, 6-14-2001; Ord. No. 2006-09, 4-11-2006; Ord. No. 2008-05, 4-24-2008; Ord. No. 2021-12, 5-27-2021)

Cross reference(s)– Dogs in outdoor seating areas of restaurants, § 6-24; Pipes, sewer, conduit, poles or other structures on, above, or under streets, § 11-142; temporary obstructions on streets and sidewalks, § 12-12.

State law reference(s)– Authority to regulate structures projecting into ways, M.G.L.A. c. 85, § 8.

Effective on: 5/27/2021

Sec. 12-15. Signs over streets and sidewalks.

(a) No permit shall be granted to place or maintain or cause or allow to be placed or maintained over a public way any sign or advertising device more than six feet in its greatest length or extending more than six feet from the street line over the public way or extending from the street line beyond four feet with the outer line of the sidewalk or at a height of less than nine feet at the lowest part thereof above the sidewalk.

(b) A fine in accordance with section 1-11 shall be levied upon any person guilty of violating the provisions of this section.

(Code 1963, § 11-8; Ord. No. 2001-09, 6-14-2001; Ord. No. 2006-09, 4-11-2006)

Cross reference(s)– Licenses, permits and miscellaneous business regulations, Ch. 8; pipes, sewer, conduit, poles or other structures on, above, or under streets, § 11-142.

Effective on: 4/11/2006

Sec. 12-16. Awnings over streets and sidewalks.

No person shall place or maintain, or allow to be placed or maintained, over any sidewalk in front of any building, any awning or shade less than seven feet in height at the lowest part thereof, or any awning or shade extending beyond the line of the sidewalk.

(Code 1963, § 11-9; Ord. No. 2006-09, 4-11-2006)

Effective on: 4/11/2006

Sec. 12-17. Posts and supports on streets and sidewalks.

No person shall erect a post in any street or sidewalk for the support of an awning, or for any other purpose, without permission of the city council.

(Code 1963, § 11-10)

Sec. 12-18. Obstacles in streets or sidewalks at night.

(a) No person shall leave any vehicle or any other obstacle or article on any sidewalk or in any public or private way, or place any obstruction in any street at any time, without first obtaining a permit from the commissioner of public works and causing such obstacle, article or obstruction to be lighted and guarded to his or her satisfaction.

(b) Any person to whom a permit is given may be required by the commissioner of public works to furnish security by a bond as provided in section 12-14 for not less than $1,000.00 to protect the city against all liability and loss arising out of such obstruction.

(c) A violation of this section shall result in a fine in accordance with the provisions of section 1-11. Each day the violation exists shall constitute a separate and new violation. This section may be enforced by the commissioner of public works or his or her designee or by any police officer.

(d) This section shall not apply to construction dumpsters. Construction dumpsters are regulated in section 12-77 of this Code.

(Code 1963, § 12-8; Ord. No. 2003-12, 7-10-2003; Ord. No. 2005-11, 7-14-2005; Ord. No. 2006-09, 4-11-2006; Ord. No. 2009-15, 11-12-2009)

Cross reference(s)– Licenses, permits and miscellaneous business regulations, Ch. 8.

Effective on: 11/12/2009

Sec. 12-19. Removal of signs, awnings, outdoor seating and other items on or over streets and sidewalks.

The superintendent of the highway division of the department of public works shall remove any shade, awning, gate, doorstep, sign or other structure placed or maintained contrary to the provisions of this article.

(Code 1963, § 11-12)

Cross reference(s)– Superintendent of highways duties, § 11-50.

Sec. 12-20. Asphalt street and sidewalk openings.

[The following regulations govern asphalt street and sidewalk openings:]

(1) *Fees*:

a. A $50.00 nonrefundable application fee is required.

b. A $500.00, certified check refundable deposit is required. Trenches not inspected due to the failure of the permittee to properly notify the highway superintendent shall be subject to loss of deposit and repeat of the trench backfilling.

c. A $5,000.00 performance and payment bond is required for each street opening permit granted.

d. The contractor must furnish the city with a certificate of insurance for general liability in the amount of $500,000.00.

(2) The superintendent of the highway department must be notified 24 hours before commencement of any work. Dig Safe must be notified.

(3) The pavement shall only be disturbed within the area requiring excavation for repair, replacement or new installation.

(4) The area to be excavated shall be precut in straight lines with 90-degree angles at the point of intersection.

(5) In the backfill process, the backfill shall be comprised of suitable material (subject to approval of the commissioner of public works or his or her authorized representative) and compacted in six-inch layers to within four inches of pavement surface or the thickness of the pavement structure (bituminous concrete, concrete, cobblestones, etc.), whichever is greater. Each layer shall be 90 percent compacted by mechanical means. Saw or pneumatically cut edges shall have a clean vertical face. All structure shall be leveled to the adjacent surfaces.

(6) Concrete should be used around all electric conduit in trenches. The excavation will then be properly barricaded to ensure safety to the traveling public and immediately reported to the department of public works. Temporary patching will be done by a contract representative of the city and will be the financial responsibility of the permittee. The permittee's barricade shall be immediately removed from the vicinity of the patched area upon completion of the temporary bituminous patching application.

(7) Any open hole does not alleviate the permittee from liability associated with that excavation. The permittee shall be responsible for the street openings and protection thereof and for any settlement of the street opening for a period of three years from the date of the final infra-red permanent repair. Any settlement of a street opening will be corrected by the city's contract representative and charged to the permittee.

(8) After a proper settling period, the excavating shall be infra-red heat treated by the contract representative of the city. This work shall be the financial obligation of the permittee.

(9) Any improperly prepared excavations and/or those left less than four inches or the thickness of the street (whichever is greater) will be temporarily filled and charged to the permittee (temporary patching). At a later date, the patch will be reexcavated and properly prepared by the permittee, as per above items and recharged to the permittee.

(10) All street excavations shall be made permanent by the infra-red heat process and will be the financial responsibility of the permittee.

(11) The installation of permanent patch does not alleviate the permittee from the responsibility for trench settlement for a period of three years from the date of the final infra-red permanent repair as per item (5).

(12) Excavations opened without a permit may be subject to cancellation and refusal of existing and future permits, license revocation, and associated fines.

(13) Police protection, if required, shall be paid by the permittee either directly or billed by the city contract representative at cost, plus handling charges.

(14) The contract representative of the city shall bill the permittee for the above-mentioned services. All invoices will be paid within 30 days. On past-due invoices a service charge of one and one-half percent per month will be allowed on accounts 30 days past due provided the rate does not exceed that which is permitted by law. Invoices exceeding 90 days shall be paid by the city, at which point the city shall fine the permittee the appropriate amount as prescribed by law, and continue to accrue the service charges together with all costs of collection, including attorney's fees.

On 90-day past-due invoices, the city will revoke existing and future permits until the payment of such invoices, including all service charges and fines.

If the account is found to be uncollectible, there shall be a lien upon such real estate in the manner provided in Chapter 40, Sections 42A to 42F of the General Laws.

(15) The below listed fees will be effective April 1, 1991:

a.	Street opening, per week.....	$50.00
	Plus, refundable deposit	500.00
b.	Sidewalk opening, per week.....	50.00
	Plus, refundable deposit	500.00
c.	Occupy street and/or sidewalk.....	50.00
	Plus, refundable deposit	500.00

(Ord. No. 1991-4, 2-14-91)

Sec. 12-20.1. Parking lot sweeping hours.

(a) No parking lots may be swept between the hours of 7:00 p.m. and 7:00 a.m. on weekdays. On Saturdays, Sundays, and holidays, no parking lots may be swept between the hours of 7:00 p.m. and 9:00 a.m.

(b) The provisions of this section shall be enforced by a noncriminal disposition pursuant to G.L.c. 40, § 21D. Each day on which a violation exists shall be deemed a separate offense and shall be punished by a fine specified in subsection 1-11(b) of this Code of Ordinances. Nothing in this provision shall be deemed to limit the use of other lawful methods of abating violations of this section, including, but not limited to, application for equitable relief from a court of law. The city may seek costs and attorney's fees from a court of competent jurisdiction for any enforcement action taken.

(Ord. No. 2016-05, 4-28-2016)

Effective on: 4/28/2016

ARTICLE II. BILLBOARDS AND OTHER FORMS OF OUTDOOR ADVERTISING

Sec. 12-21. Regulating billboards and other forms of outdoor alcohol advertising.

The primary purposes of this section is to promote the welfare and temperance of persons under 21 years of age by reducing their exposure to certain publicly visible advertisements of alcoholic beverages and to promote wholesome, family-oriented social settings when children are present that reject the purchase, consumption or possession of alcoholic beverages by persons less than 21 years of age.

(Ord. No. 2008-04, 3-27-2008)

Effective on: 3/27/2008

Sec. 12-22. Definitions.

Alcoholic beverage means alcohol, or any beverage containing more than one-half of one percent of alcohol by volume, which is capable of use for beverage purposes, either alone or when diluted.

Effective on: 3/27/2008

Alcoholic beverage outdoor advertisement means any sign, poster, placard, device, graphic display, or any other form of advertisement bearing a word, mark, description, or other device that is used to advertise an alcoholic beverage or the business of a person who manufacturers, sells, or distributes an alcoholic beverage in publicly visible locations. "Alcoholic beverage outdoor advertisement" does not include (i) advertisements inside licensed premises, (ii) any advertisement that contains the name or slogan of the licensed premises that has been placed for the purpose of identifying the licensed premises, (iii) any neon or electronically charged sign, if otherwise allowed by the Somerville Zoning Ordinance, on licensed premises that is provided as part of promotion of a particular brand of alcoholic beverage, (iv) any advertisement on property adjacent to an interstate highway, (v) advertisements appearing on radio or television, or (vi) advertisements in a public vehicular conveyance for hire, on a race car while participating at a professional racing event or at a permanent motorized racetrack facility, on a boat participating in a racing event or a boat show, on an aircraft, on a bicycle or on the clothing of a member of a bicycle team participating in an organized bicycle race, or in a newspaper, magazine, or other literary publication published periodically. For the purpose of this definition, the word "sign," with respect to a retailer, does not include an identifying label affixed to a container as authorized by law.

Effective on: 3/27/2008

Publicly visible locations include, but are not limited to, outdoor billboards, awnings, electric signs, sides of buildings, screens, benches, barriers, stages, fences, signs attached to poles, posts or other figures, and freestanding signboards, wherever located, whether indoor or outdoor, however manufactured, and comprising whatever materials.

Effective on: 3/27/2008

(Ord. No. 2008-04, 3-27-2008)

Effective on: 3/27/2008

Sec. 12-23. Alcoholic beverage outdoor advertisements.

(a) No person or business entity may erect or maintain an alcoholic beverage outdoor advertisement within 500 feet of any public playground, private playground, playground area in a public park, elementary school or secondary school, place of worship, or childcare facility.

(b) Any person or entity seeking to place an alcoholic beverage outdoor advertisement within the 500-foot limit established in subsection (a) may apply for an exemption with the City of Somerville in which the exemption would apply. The City of Somerville shall grant the exemption if the applicant demonstrates that the 500-foot limit denies the applicant a reasonable opportunity to communicate truthful information regarding alcoholic beverages to adult consumers who reside and work in the City of Somerville. In determining whether the applicant has been denied such an opportunity, the City of Somerville may consider: (1) potential locations for outdoor advertising that are outside the 500-foot limit and the percentage of the adult population that resides or works in these areas; (2) the availability of other forms of advertising to reach adult audiences and their relative cost; (3) the extent to which adults within the City of Somerville are familiar with the applicant's alcoholic beverage products; (4) any advertising practices codes with which the applicant voluntarily has agreed to comply; (5) any other relevant evidence.

(c) No person may place any advertisement of any alcoholic beverage product on any property owned or controlled by the City of Somerville.

(d) Every agreement for lease to a private party of property owned or controlled by the City of Somerville shall include a provision prohibiting the placement on such property of any advertisement for any alcoholic beverage product.

(Ord. No. 2008-04, 3-27-2008)

Effective on: 3/27/2008

Sec. 12-24. Public service advertising.

This statute shall not be construed to prohibit the display of public service messages designed to communicate the hazards of alcoholic beverages or to encourage minors to refrain from consuming or purchasing alcoholic beverages. However, this section shall not be construed to permit such a message when it is made in conjunction with the positive display of a representation, image, artwork, photograph, logo, graphic, device, display, regalia, insignia, indicia, design, slogan, trade name, brand name, product name, permittee or licensee name used for marketing or promotion of alcoholic beverages.

(Ord. No. 2008-04, 3-27-2008)

Effective on: 3/27/2008

Sec. 12-25. Enforcement.

The provisions of this section shall be enforced by the inspectional services division by a noncriminal disposition pursuant to G. L. c. 40, s. 21D. Each violation shall be deemed a separate offense. Fines are specified in section 1-11(b) of this Code. Nothing in this provision shall be deemed to limit the use of other lawful methods of abating violations of this section, including but not limited to application for equitable relief from a court of law. The city may seek costs and attorney's fees from a court of competent jurisdiction for any enforcement action taken.

(Ord. No. 2008-04, 3-27-2008; Ord. No. 2008-06, 4-24-2008)

Effective on: 4/24/2008

Secs. 12-26-12-45. Reserved.

Effective on: 3/27/2008

ARTICLE III. PARKS, PLAYGROUNDS AND SCHOOL GROUNDS*

***Charter reference(s)**– School committee, ARTICLE 5.

Cross reference(s)– Recreation commission, § 2-246 et seq.; alcoholic beverages in public areas, § 9-1.

State law reference(s)– Parks and playgrounds generally, M.G.L.A. c. 45.

Sec. 12-46. Activities on certain public property prohibited.

(a) Restrictions. A person may not play baseball, football, or any other games, or operate a skateboard at any time on all property owned, maintained, and controlled by the city located within the following area: the intersection of Walnut Street and Highland Avenue, heading south easterly on Highland Avenue to the intersection of School Street and Highland Avenue, turning north easterly down School Street to the B&M railroad bridge on School Street, turning south westerly along the railroad tracks back toward Walnut Street and continuing south westerly onto Medford Street to the intersection of Medford and Walnut Street, and turning south westerly back to the intersection of Walnut Street and Highland Avenue.

(b) Enforcement and penalties. Whoever violates any of the provisions of this section shall be punished by a fine as set forth in section 1-11(b) of the Somerville Code of Ordinances in the manner provided by G. L. c. 40, § 21D. The police department is the enforcing authority for this section. Each day a violation occurs shall be a separate violation subject to another fine. This section shall not be construed to impair any common law or statutory cause of action or other legal remedy available to the city.

(Code 1963, § 12-23; Ord. No. 2004-03, 2-12-2004)

Effective on: 2/12/2004

Sec. 12-47. Playing on Western Junior High School grounds.

No person shall play ball or other games except basketball in or on the basketball courts at the Western Junior High School premises.

(Code 1963, § 12-24)

Sec. 12-48. Closing time of parks and playgrounds.

Parks and playgrounds shall be closed to the public except city personnel conducting city business therein daily between hours of 10:00 p.m. and 8:00 a.m.

(Code 1963, § 12-78; Ord. No. 2019-02, 1-24-2019)

Effective on: 1/24/2019

Sec. 12-49. Use of parks and playgrounds during closed times.

Whenever any group, association or organization desires to use park or playground facilities between the hours of 10:00 p.m. and 8:00 a.m. for a particular purpose such as, but not limited to, athletic events, a representative of said group, association or organization shall first obtain a permit from the city council for such purpose. In granting such permission, the city council shall make allowances for persons, other than said group, association or organization, to view any particular event or program. Person participating in or viewing duly-organized events continuing beyond 10:00 p.m. shall not be subject to the requirements set forth in this section.

Cross reference(s)– Licenses, permits and miscellaneous business regulations, Ch. 8.

Sec. 12-50. Interfering with the use of parks and playgrounds.

No person shall enter onto or cause anything under his or her control to enter onto any city park, playing field, or court so as to interfere with or obstruct in any way the full use and enjoyment of the park, playing field or court by a person or group with a valid permit to use said park, playing field or court issued by the commissioner of public works.

(Code 1963, § 12-1A)

Sec. 12-51. Dogs in parks and playgrounds.

(a) When the commissioner of public works, in his or her discretion, shall determine that any park, playground, schoolyard, or other public area in the control of the city is inappropriate for the allowance of entry by dogs, due to usage by small children, or landscaping considerations, or any other reason sufficient to him or her, he or she shall cause such place to be posted with appropriate and sufficient signs reading, "No Dogs Allowed." No person shall permit, suffer or allow any dog owned by him or her, or in his or her custody or control, whether restrained or unrestrained, to enter upon any park, playground, schoolyard, or other public area in the control of the city so posted as aforesaid.

(b) For purposes of sections 3-35 and 3-36, any violation of this section shall be treated by the dog officer as a violation of section 3-34.

(c) The commissioner of public works may, in his or her discretion, designate specific off-leash areas for use by dogs to run loose, and shall promulgate regulations for the use thereof. Such areas shall be properly enclosed to such specifications as the commissioner may determine. Such designated off-leash recreational areas, dog parks or dog runs shall be utilized exclusively for the use of dogs off leash. No dog under any order of restraint or muzzling in accordance with section 3-32, and no dog identified in accordance with section 3-33, shall be permitted to utilize such designated off-leash area. The commissioner shall make and post these regulations at every entry to such designated off-leash areas. The commissioner may, at his or

her discretion, make additional rules and regulations, which shall be posted in a like manner. Any designation of off-leash areas, or any rules and regulations enacted by the commissioner hereunder shall become effective within 45 days of the meeting of their submission to the city council, unless the city council orders otherwise.

(Ord. No. 1975-12, §§ 1, 2, 2-26-76; Ord. No. 2005-12, 7-14-2005)

Effective on: 7/14/2005

Secs. 12-52-12-65. Reserved.

ARTICLE IV. PLACEMENT AND MAINTENANCE OF NEWSRACKS

Sec. 12-66. Definitions.

When used in this section, unless the context otherwise requires, the following terms shall have the following meanings:

Certificate holder shall mean the holder of a certificate of compliance issued by the superintendent in accordance with the provisions of this section. A certificate holder is responsible for the installation and maintenance of newsracks encompassed by any certificate of compliance issued pursuant to the provisions of this section and for compliance with all provisions contained herein.

Certificate of compliance shall mean the certificate of compliance issued by the superintendent to the certificate holder in accordance with the provisions of this section.

Newsrack shall mean any type of unmanned device for the vending or free distribution of newspapers, periodicals or printed material of whatever nature.

Newsrack sticker shall mean a sequentially numbered sticker issued by the commissioner for placement on individual newsracks in accordance with the provisions of section 12-67.

Operator shall mean any natural person or other legal entity including, but not limited to, corporations, partnerships, joint ventures and the like who either own, operator or are otherwise in control of a newsrack.

Superintendent shall mean the superintendent of inspectional services of the department of public works of the city or such person as said superintendent may from time to time designate.

(Ord. No. 1998-2, 12-2-98)

Sec. 12-67. Newsracks on public property.

(a) *Requirement*. No person shall place, affix, erect, construct or maintain a newsrack in or on any part of a public way without first obtaining a certificate of compliance from the superintendent in accordance with the provisions of this section. The certificate of compliance must be renewed annually on April 1 by application to the superintendent of inspectional services.

(b) *Limit*. Only one certificate of compliance shall be required for each operator of a newsrack or series of newsracks notwithstanding the number of newsracks or similar devices dispensing such newspapers, periodicals or newsracks or similar devices dispensing such newspapers, periodicals or printed material.

(c) *Issuing authority*. The superintendent shall be the issuing authority and coordinator of the application process and administration of this section.

(d) *Approving authorities*. The approving authorities shall be the Somerville Traffic Commission, Somerville Fire Department, the director of the office of traffic and parking and the Chief of the Somerville Fire

Department, or his/her designee. These approvals shall be submitted to the superintendent who shall coordinate and review the application.

(e) *Application process*. Applicants must complete a written application on a form provided by the superintendent.

(f) *Application*. The application shall describe in sufficient detail, the number location and type of newsracks for which the certificate of compliance is sought and shall contain the following information:

(1) The name, address and telephone number of the applicant who is the owner/operator or other person who is the principal responsible person in charge of the newsrack(s); and

(2) The name, address and telephone number of a natural person (if different from the applicant) whom the city may notify and/or contact at any time concerning the applicant's newsracks. This person would be responsible for receiving complaints and notices of violations when a certificate of compliance is issued and for providing information relating to the application during the application process.

(3) The number of newsracks and a written description specifying the proposed approximate location of each; and

(4) A certificate of insurance naming the City of Somerville as an additional insured in an amount sufficient to indemnify the city and hold it harmless from any and all claims or judgments for personal and bodily injury, including death, or property damage and from costs and expenses to which the city may be subjected or which it may suffer or incur by reason of the design, placement, installation, operation or maintenance of any of the applicant's newsracks. Reasonable evidence of self-insurance coverage may be substituted by the applicant for the certificate of insurance. Insurance under this section shall run continuously with the presence of the applicant's newsrack in the city's public ways and any termination or lapse of such insurance shall be a violation of this article, subject to appropriate remedy under subsection 12-73 of this section; and

(5) A certificate from the applicant stating that the proposed locations for all of the newsracks listed in the application are in compliance with the provisions of this section.

(g) *Issuance of a certificate of compliance*. Upon a finding by the superintendent that the applicant is in compliance with the provisions of this section, the superintendent shall issue a certificate of compliance. The superintendent shall issue a partial certificate of compliance upon a finding that some of the proposed newsrack locations are in compliance with the provisions of this section. Upon issuance of a certificate of compliance or a partial certificate of compliance, the superintendent shall issue the appropriate number of newsrack stickers for the locations that have been approved. A certificate of compliance or a partial certificate of compliance shall designate the applicant as the certificate holder. The superintendent shall issue a certificate of compliance within ten days of the superintendent's receipt of the completed application.

(h) *Denial of certificate of compliance*. If an application for some newsrack location shall be denied, the superintendent shall notify the applicant within 30 days of the superintendent's receipt of the completed application. The superintendent shall state the specific reasons for denial and suggest alternative locations. The applicant may reapply for a substitute alternative location without having to pay an additional application fee. An applicant who has been denied a certificate of compliance under this section may appeal within 30 days of receiving notice of the denial by requesting in writing to the superintendent to appear before the commissioner of the department of public works to review said denial. The commissioner of the department of public works shall hear the appeal within 30 days of receipt of the appeal. The commissioner shall send his or her decision to the applicant within ten days after the hearing.

(Ord. No. 1998-2, 12-2-98; Ord. No. 2005-03, 2-24-2005)

Effective on: 2/24/2005

Sec. 12-68. Fees for newsrack certificates of compliance.

(a) There shall be a certificate of compliance fee in the amount of $50.00. This fee shall be due upon initial application and upon each annual renewal.

(b) In addition to the certificate of compliance fee, an annual fee of $25.00 per newsrack authorized shall be paid to the city to offset the costs of the city's monitoring compliance with this article.

(c) *Additional certificate of compliance*. If at any time after the superintendent has issued a certificate of compliance, a certificate holder proposes to install additional newsracks, then the provisions of subsection 12-67 are to be repeated. No additional certificate of compliance fees shall be charged.

(Ord. No. 1998-2, 12-2-98; Ord. No. 2005-03, 2-24-2005)

Effective on: 2/24/2005

Sec. 12-69. Newsrack placement and location.

Placement. Subject to the prohibitions contained in this section newsracks shall be placed parallel to and not less than 18 inches nor more than 24 inches from the edge of the curb. Newsracks placed near the wall of a building or other structure must be placed parallel to and not more than six inches away from the wall.

No more than four newsracks shall be located per cluster on any public way. The distance of newsracks is at the discretion of the superintendent of inspectional services, to address public safety concerns. No newsrack shall be affixed, erected, installed, placed, used or maintained:

(1) At any location whereby the clear space for the passage of pedestrians is reduced to less than four feet in width; or

(2) Within five feet of any marked, or unmarked crosswalk; or

(3) Within five feet of any fire hydrant, fire lane, fire call box, police call box or other emergency facility, mail box, telephone booth or stand; or

(4) Within five feet of any part of a curb return of a curb ramp or driveway, or in the case of a curb ramp or driveway without a curb return, within five feet of the point where the curb edgestone or edging begins a change in grade toward the driveway or ramp on each side thereof, or in the case of a termination of the curb, edgestone or edging without a change in grade or a turn, within five feet of the point of the same terminates on each side of the ramp or driveway; or

(5) Within five feet of any traffic control signal or traffic sign; or

(6) Within five feet of a bicycle rack; or

(7) Within five feet ahead or 15 feet to the rear of any designated bus stop, taxi stand, valet parking area, loading zone or fire lane, unless such newsrack is placed against a wall that is within four feet of a designated bus stop, taxi stand, valet parking area, loading zone or fire land and the newsrack so placed does not project into or otherwise interfere with the unobstructed flow of pedestrian and vehicular traffic; or

(8) Which in any way protrudes onto a street.

(Ord. No. 1998-2, 12-2-98; Ord. No. 2005-03, 2-24-2005)

Effective on: 2/24/2005

Sec. 12-70. Attaching newsracks to trees, signs and other posts.

(a) *Attachment to trees and other objects prohibited*. Except to the extent permitted by regulations promulgated by the superintendent, no operator shall place or cause to be placed and no operator shall

suffer to remain any newsrack chained or otherwise attached to any tree, street light post, traffic signal or sign.

(b) *Attachment to other newsracks*. Newsracks, when placed side by side, may be chained or otherwise attached to one another, provided that no group of newsracks shall extend for a distance of more than ten feet along a curb, and a space of not less than five feet shall separate each group of newsracks.

(Ord. No. 1998-2, 12-2-98)

Sec. 12-71. Advertising on newsracks.

It shall be unlawful for any operator to use a newsrack for advertising or publicity purposes other than that dealing with the display, sale or purchase of the publications dispensed therein.

(Ord. No. 1998-2, 12-2-98)

Sec. 12-72. Newsrack specifications.

Newsracks shall be of study material and installed or otherwise placed in accordance with the following provisions:

(1) Each newsrack shall prominently display the newsrack sticker issued by the superintendent pursuant to the provisions of this section.

(2) Each newsrack shall be:

a. Installed or placed on the pavement in an upright, sufficiently weighted and secure position; and

b. Of a type that is completely enclosed, with a self-closing door that is either self-latching or otherwise requires manual or mechanical release at each use; and

c. Maintained in a state of good repair and in a neat and clean condition; and

d. Maintained in a condition that is free of accumulations of outdated printed materials, trash, rubbish or debris.

(3) Each newsrack shall be regularly serviced so that:

a. It is kept reasonably free of graffiti; and

b. It is kept reasonably free of chipped, faded, peeling and cracked paint in the visible painted areas thereof; and

c. It is kept reasonably free of rust and corrosion in the visible unpainted metal areas thereof; and

d. The clear glass or plastic parts thereof, if any, are not broken and are kept reasonably free of tears, peeling or fading; and

e. The structural parts of the newsrack are not broken or unduly misshapen.

(Ord. No. 1998-2, 12-2-98)

Sec. 12-73. Enforcement.

(a) *Nonconforming newsracks*. Any newsrack found not to be in compliance with this section shall be subject to the enforcement provisions contained herein.

(b) *Abandonment*. In the event that any newsrack installed pursuant to the provisions of this section does not contain the printed material being dispensed therein for a period of seven days after the release of the current issue, the director of operations, director of traffic and parking, highway superintendent or the superintendent of inspectional services, may deem the newsrack abandoned and take appropriate action under this section. A newsrack shall otherwise be deemed abandoned if no printed material is found in the newsrack for a period of more than 15 consecutive days. In the event that a certificate holder voluntarily

abandons a newsrack location, the certificate holder shall so notify the superintendent, completely remove the newsrack and restore the public way to a safe condition.

(c) *Enforcement*.

(1) Enforcement of the provisions of this section shall be carried out by the superintendent. Upon a determination that a violation of any provision of this section exists, the superintendent shall notify the certificate holder of the violation in writing by first class mail. The notice shall include:

a. The newsrack sticker and location of the newsrack; and

b. The date of the incident or other cause giving rise to the violation; and

c. A brief and concise statement of the facts causing the violation.

(2) The notice shall inform the certificate holder that at the expiration of ten days from the receipt of the violation notice, the newsrack will be removed by the superintendent, unless the violation is corrected.

(3) Upon removal of a newsrack, the superintendent shall send, by first class mail, written notice of such removal to the certificate holder.

(4) Notwithstanding the provisions of the foregoing paragraphs (1)-(3) of this subsection, the superintendent may order the immediate removal of any newsrack(s) that the superintendent determines prevents an imminent threat or peril to public safety, provided that the certificate holder shall be notified of such removal as soon as practicable thereafter, and further provided that any newsrack so removed shall be stored for a period of 30 days in order to allow the certificate holder to retrieve the newsrack. If the superintendent removes a newsrack under this subsection (c)(4), which does not have a certificate of compliance, the superintendent shall dispose of the newsrack at the end of the 30-day period as abandoned property.

(Ord. No. 1998-2, 12-2-98)

Sec. 12-74. Penalties.

(a) A newsrack removed pursuant to this section may be retrieved by the certificate holder at any time within 30 days of its removal upon payment of a removal fee of $25.00 plus a storage fee of $5.00 per day, to a maximum combined removal and storage fee of $100.00.

(b) After 30 days, any newsracks removed by the superintendent pursuant to section 12-73 shall be deemed "abandoned property" and become the property of the city.

(c) Failure of a certificate holder to retrieve a newsrack within the specified 30-day period shall not operate to dismiss any fees owned to the city for removal and storage of such newsrack. Unpaid fees accrued pursuant to this subsection shall be considered a debt payable to the city.

(Ord. No. 1998-2, 12-2-98)

Sec. 12-75. Additional regulations.

The superintendent may, after public hearing, promulgate such rules and regulations consistent with the provisions of this section and the laws of the Commonwealth of Massachusetts as shall carry out the purposes of this section.

(Ord. No. 1998-2, 12-2-98)

Sec. 12-76. Provisions for other regulations.

Nothing in this section shall affect the adoption of regulations affecting newsracks by other governmental bodies, such as historic district commissions, to the extent such bodies are authorized to adopt such regulations.

(Ord. No. 1998-2, 12-2-98)

Sec. 12-77. Construction dumpsters.

It shall be unlawful to place any construction dumpster on any public or private street in the city without first obtaining a permit for such placement from the superintendent of inspectional services. Violations of any conditions of the permit by a homeowner and/or permittee shall be deemed a violation of this section. Violations of this section are subject to penalties in accordance with section 1-11(b) of the Code of Ordinances. Each consecutive day that a violation exists shall be considered a separate offense.

(Ord. No. 2009-15, 11-12-2009)

Effective on: 11/12/2009

Secs. 12-78-12-87. Reserved.

Effective on: 11/12/2009

ARTICLE V. SHOPPING CARTS

(Ord. No. 2004-07, 6-24-2004)

Sec. 12-88. Definitions.

The following terms, whenever used or referred to in this article, shall have the following respective meanings, which definitions shall apply in the interpretation and enforcement of such sections unless a different meaning clearly appears from the context.

Business day shall mean any day the owner is open for business.

Effective on: 6/24/2004

Cart shall mean any rolling or non-rolling basket or container commonly used in supermarkets, grocery stores, department stores, retail business establishments and other stores frequented by customers.

Effective on: 6/24/2004

City shall mean the City of Somerville.

Effective on: 6/24/2004

Owner shall mean the person, store or company that owns, leases or is otherwise primarily responsible for control of the cart in question.

Effective on: 6/24/2004

Public property shall mean any property owned or controlled by the City of Somerville, the Commonwealth of Massachusetts or the United States of America, which is open to the public for use and enjoyment, and shall include but not limited to bridges, bus stops, parks, playgrounds, streets and subway stops.

Effective on: 6/24/2004

Store shall mean any individual store, chain store, supermarket, grocery store, department store, or other business establishment frequented by patrons that owns, leases or controls shopping carts.

Effective on: 6/24/2004

Street shall mean any street, avenue, road, alley, lane, highway, private way or other public way, including pavement, shoulders, gutters, sidewalks and other places within the street lines used by the general public, and public parking lots and areas.

Effective on: 6/24/2004

Superintendent shall mean the superintendent of inspectional services.

Effective on: 6/24/2004

(Ord. No. 2004-07, 6-24-2004)

Effective on: 6/24/2004

Sec. 12-89. Retrieval plan.

Each store furnishing shopping carts to patrons to transport items purchased from the store, is hereby required to develop and implement a specific plan to retrieve its shopping carts that are found on public property. Two or more stores may collaborate and submit to the superintendent of inspectional services ("superintendent") a single plan.

Plans must be submitted to the superintendent within 60 days of the effective date of this article, and must include an effective and specific method of retrieving the store's shopping carts found on public property. Failure to submit a cart retrieval plan in a timely manner shall initially result in a written warning, and if not addressed within five business days of the date of said warning then in a fine in accordance with section 1-11(b).

(Ord. No. 2004-07, 6-24-2004; Ord. No. 2005-11, 7-14-2005)

Effective on: 7/14/2005

Sec. 12-90. Plan submission, amendment and review.

The superintendent of inspectional services shall determine whether a store's plan for retrieving its shopping carts is reasonably calculated to result in the prompt removal of the store's shopping carts found on public property.

Based on the above-referenced criteria, the superintendent shall approve, reject or recommend modification of the plan, within 60 days of when the plan is submitted.

If a plan is approved, the proposed measures shall be implemented no later than 30 days after approval.

If a plan is rejected, the superintendent shall provide the store with written notice of the basis for said rejection. The store shall modify the plan and resubmit it to the superintendent no later than 30 days after the date of its rejection.

Following the approval of a plan, a store may file a written request with the superintendent to amend its plan. The proposed amended plan is subject to the same criteria and review process as an original plan.

If a store's original or amended plan is approved by the superintendent and subsequently, the superintendent determines in writing that the store's plan for retrieving its shopping carts is ineffective, the superintendent may place on the city council's agenda a hearing for the purpose of modifying the store's plan. The city council shall provide the store with at least ten days' written notice of such hearing, along with a copy of the superintendent's recommendation. After consideration of the matter and after permitting the store to be heard, the city council may modify or leave the plan unchanged.

(Ord. No. 2004-07, 6-24-2004)

Effective on: 6/24/2004

Sec. 12-91. Identification of carts.

All shopping carts shall have a sign affixed to it that clearly identifies the name, address and telephone number of the owner of the cart.

(Ord. No. 2004-07, 6-24-2004)

Effective on: 6/24/2004

Sec. 12-92. Removal from store property prohibited.

It shall be unlawful for any person to remove a shopping cart from the premises of a store.

(Ord. No. 2004-07, 6-24-2004)

Effective on: 6/24/2004

Sec. 12-93. Responsibility of owner.

It shall be unlawful for any owner of any cart to permit any cart to be removed from the store premises and left unattended or abandoned on any street or public place with the city. Any owner who shall directly or indirectly permit or suffer his customers to take such carts off the business premises of said owner shall be responsible if such cart is abandoned or left unattended on a public street or public property.

(Ord. No. 2004-07, 6-24-2004)

Effective on: 6/24/2004

Sec. 12-94. Notification.

If a cart is located on public property and identification of the owner of such cart is affixed thereto, prior to the city removing or impounding any cart the owner shall be notified of the location of the cart and required to retrieve the cart as soon as practicable but in no event later than the end of the current business day. For purposes of this section, notification includes, but is not limited to either of the following:

(a) Telephone communication from a city employee or other agent to the owner or an employee, servant or other agent of the owner.

(b) Written notice sent by regular, first class mail to the business address affixed to the cart, if any, otherwise to the address last known by the city to be the address of the owner.

If a cart is abandoned or left unattended in a location such that it may impede emergency services, obstruct vehicular traffic, or create a hazard to public safety on a public right-a-way, the city may remove or impound or cause the removal and impoundment of the cart immediately.

By the end of the second business day following the day of the shopping cart's impoundment, the city shall notify the owner of the shopping cart's impoundment and the location where the cart may be reclaimed. The city shall record that notification was given.

(Ord. No. 2004-07, 6-24-2004)

Effective on: 6/24/2004

Sec. 12-95. Retrieval of carts.

All stores providing carts for its customers shall immediately retrieve any cart abandoned on public property.

The city shall remove or cause to be removed any cart found abandoned or left unattended on any street or other public property and shall take the same to city property where the cart shall be held for 30 days after notice or until reclaimed.

(Ord. No. 2004-07, 6-24-2004)

Effective on: 6/24/2004

Sec. 12-96. Reclamation of carts.

Whenever the city shall take any cart containing the owner's identification, the cart's owner shall be notified by the city and the cart may be reclaimed upon payment of an administrative fee to the city at anytime prior to the sale, dismantling or destruction thereof.

(Ord. No. 2004-07, 6-24-2004; Ord. No. 2005-11, 7-14-2005)

Effective on: 7/14/2005

Sec. 12-97. Disposal of unclaimed carts.

If a cart is not reclaimed within 30 days, the cart may be disposed of as abandoned and unclaimed property in any manner provided by law, and the owner shall reimburse the city for any and all reasonable disposal fees that result.

Failure of an owner to retrieve a shopping cart within the specified 30-day period shall not operate to dismiss any fees owned to the city for removal and storage of such shopping cart. Unpaid fees accrued pursuant to this section shall be considered a debt payable to the city.

(Ord. No. 2004-07, 6-24-2004)

Effective on: 6/24/2004

Sec. 12-98. Severability.

If any section, phrase, sentence or portion of this article is for any reason held invalid, such section, phrase, sentence or portion of this article shall be deemed separate, distinct and independent provision and shall not affect the validity of the remaining portions this article.

(Ord. No. 2004-07, 6-24-2004)

Effective on: 6/24/2004

Sec. 12-99. Mandatory implementation and ongoing use of measures to prevent removal of shopping carts.

(a) In addition to complying with sections 12-89 through 12-98, to the extent applicable, each and every shopping cart owner shall implement and enforce, on an ongoing basis and at all times, measures to contain its shopping carts within the premises of its business establishment and/or to prevent any unauthorized person from removing one or more shopping carts from such premises. Permitted measures include any or all of the following:

  (1) A wheel locking mechanism installed on all shopping carts and used in conjunction with an electronic barrier along the perimeter of the premises, which is activated when a shopping cart crosses the electronic barrier;

  (2) Shopping carts equipped with a protruding arm or similar device prohibiting a cart from being removed from the interior of a business establishment; or

  (3) Any other similar method that prevents the removal of shopping carts from the premises.

(b) Each and every shopping cart owner shall post a sign having a minimum dimension of 12 inches by 18 inches in a conspicuous location at each entrance to the premises notifying shopping cart users of the containment measures put into place pursuant to this section.

(c) Each and every shopping cart owner shall implement shopping cart containment measures and otherwise come into compliance with the requirements of this section within 120 days of final approval of this section.

(d) The provisions of this article may be enforced by the superintendent of inspectional services or the police department by a noncriminal disposition pursuant to G. L. c. 40, § 21D. Each day on which a violation exists shall be deemed a separate offense. Any person, firm, corporation, association or other entity violating any provision of this article shall be punished by a fine in accordance with section 1-11(b).

(Ord. No. 2007-03, 3-8-2007)

Effective on: 3/8/2007

ARTICLE VI. TREE PRESERVATION ORDINANCE

(Ord. No. 2009-04, 4-23-2009; Ord. No. 2019-15, 6-27-2019)

Editor's note(s)— Ord. No. 2019-15 , adopted June 27, 2019, effective August 1, 2019, repealed the former Art. VI, §§ 12-100—12-106, and enacted a new Art. VI as set out herein. The former Art. VI pertained to similar subject matter and derived from Ord. No. 2009-04, April 23, 2009; Ord. No. 2009-08, June 11, 2009; Ord. No. 2017-04 , April 27, 2017; Ord. No. 2017-12, October 12, 2017; Ord. No. 2018-19, November 8, 2018.

Sec. 12-100. Intent and purpose.

The preservation of the tree canopy and the planting of replacement trees is intended to enhance the quality of life and the environment of the city; to reduce energy consumption; to protect air quality; to provide protection from glare and heat; to baffle noise; to reduce topsoil erosion and stormwater runoff; to preserve and enhance habitat for wildlife; to protect and increase property values; to combat climate change through carbon sequestration; to provide natural privacy for neighbors; to enhance the overall appearance of the city; and to acknowledge the intrinsic value of the mature trees within our community.

(Ord. No. 2009-04, 4-23-2009; Ord. No. 2009-08, 6-11-2009; Ord. No. 2017-12, 10-12-2017; Ord. No. 2018-19, 11-8-2018; Ord. No. 2019-15, 6-27-2019)

Effective on: 6/27/2019

Sec. 12-101. Applicability.

The terms and provisions of this article shall apply to trees within the City of Somerville that are located on city owned property, on private property, or in the public right-of-way.

(Ord. No. 2009-04, 4-23-2009; Ord. No. 2019-15, 6-27-2019)

Effective on: 6/27/2019

Sec. 12-102. Definitions.

Caliper means a measurement of the tree trunk diameter used when purchasing tree plantings measured at 12 inches above the ground.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

City tree means a tree located in a public area under the control of the city, including any land owned, leased, or licensed by the city, such as a public park, community garden, playground, school yard, library lawn, cemetery, plaza, triangle, or square. This does not include any tree that fits the definition of a public shade tree under M.G.L. c. 87 § 1.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Diameter at breast height (DBH) means the diameter of a tree trunk measured in inches at a height of four and a half feet above the ground. For multiple trunk trees, DBH is the aggregate diameter of the trunks.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Invasive plant means a plant that is both non-native and able to establish on many sites, grow quickly, and spread to the point of disrupting plant communities or ecosystems, including but not limited to the trees listed on the Massachusetts Prohibited Plant List.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Outdoor construction activity means outdoor construction or site work that requires a permit, including any new construction, major renovations, full demolition of a building, excavations, utility or streetscape work within fifty feet of the trunk of a public shade tree, city tree, or tree on private property, or roof or siding work within ten feet of the trunk of a public shade tree, city tree, or tree on private property.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Private tree means a tree located on private property.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Public shade tree means a tree located in the public way, as defined in M.G.L. c. 87, § 1.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Removal means the intentional cutting down of any tree, including all other acts which cause actual or effective removal through damaging, poisoning, or other direct or indirect actions that result in the death of the tree. This includes excessive pruning.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Significant tree means any living tree that is either: (1) not an invasive plant and is eight inches or more in DBH; or (2) is an invasive plant other than Tree of Heaven (Ailanthus altissima) and is twenty-four inches or more in DBH.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

(Ord. No. 2009-04, 4-23-2009; Ord. No. 2019-15, 6-27-2019; Ord. No. 2020-24, 10-8-2020; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-103. Tree warden.

The tree warden shall be an employee of the city, appointed by the mayor and subject to confirmation by the City Council, for a term of three years. The tree warden may delegate, subject to their control and direction, any of the powers and duties conferred upon them as tree warden to any other officer or employee of the city.

(1) The tree warden shall be qualified for the role as defined in M.G.L. c. 41 § 106, and also according to the standards established and published by the Massachusetts Tree Wardens and Foresters Association.

(2) The duties and responsibilities of the tree warden shall conform to M.G.L. c. 87 and shall include the following:

(A) Management of all trees within public rights-of-way and on city property.

(B) Granting or denying and attaching reasonable conditions to all permits required under this article.

(C) Posting notices and holding public hearings for the removal of public shade trees and city trees as required by this article.

(D) Enforcement of this article.

(E) Adoption and amendment of rules, regulations, and standards consistent with this article for the purpose of carrying out and enforcing its provisions.

(Ord. No. 2009-04, 4-23-2009; Ord. No. 2019-15, 6-27-2019; Ord. No. 2019-22, 11-14-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-104. Senior urban forestry and landscape planner.

The senior urban forestry and landscape planner shall be an employee of the city, appointed by the mayor. The senior urban forestry and landscape planner may delegate, subject to their control and direction, any of the powers and duties conferred upon them as senior urban forestry and landscape planner to any other officer or employee of the city.

(1) The senior urban forestry and landscape planner shall be a Certified Arborist by the Massachusetts Arborist's Association, International Society of Arboriculture, or a successor of either organization.

(2) The duties and responsibilities of the senior urban forestry and landscape planner shall include the following:

(A) Seeking grants or other assistance concerning the preservation and maintenance of the city's tree canopy.

(B) Developing and publishing policies, regulations, tree inventory, manuals, and other data and documents necessary to carry out the purpose and intent of this article.

(C) Supervising the planting and care of city trees to ensure they conform to relevant rules, regulations, and standards.

(D) Assisting the tree warden to facilitate the fulfillment of their responsibilities.

(Ord. No. 2009-04, 4-23-2009; Ord. No. 2019-15, 6-27-2019; Ord. No. 2019-22, 11-14-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-105. Urban forestry committee.

(a) Purpose: The Urban Forestry Committee ("the committee") shall be charged with advising with respect to the management and maintenance of all existing and new trees and shrubs on all public grounds and public ways of the city.

(b) Duties: The committee:

(1) Shall review planting policies for trees and shrubs on public grounds and public ways of the city, appraise the appropriateness of plantings, their placement, and the type of maintenance necessary.

The committee shall also review planting proposals which it deems significant for trees and shrubs on public grounds and public ways of the city.

(2) May comment during a city permitting review process.

(3) May elect to review issues related to the health, effective maintenance, and protection of existing trees and shrubs on public grounds and public ways of the city, recommend solutions to problems identified with plantings, update the tree inventory with detailed information, and support public education and outreach by:

(A) Promoting knowledge and awareness of the benefits of trees in the city.

(B) Developing and maintaining a website;

(C) Developing and maintaining a noteworthy tree program;

(D) Developing educational materials regarding best management practices for tree care;

(E) Supporting city staff in establishing a volunteer adopt-a-tree program;

(F) Supporting city staff during Arbor Day celebrations; and

(G) Considering and recommending incentives for tree planting and maintenance.

(4) Shall, upon request of an applicant, consider and make recommendations to the tree warden on waivers for required replantings or payments associated with the issuance of a tree permit.

(5) May keep records of trees planted and removed within the city and may issue regular reports on the overall status of the city's urban canopy.

(c) Membership: This committee shall consist of the following members:

(1) The tree warden and senior urban forestry and landscape planner shall serve by virtue of their office and may designate another employee or officer of the city to serve temporarily in the event that they are unable to attend a meeting of the committee;

(2) Seven members of the public, with at least one member demonstrating expertise in the field of urban forestry, and at least one member demonstrating expertise in the field of landscape design, each serving a term of three years, appointed by the mayor, and subject to confirmation by the City Council; and,

(3) Two members of the public between the ages of fourteen and eighteen at the time of their appointment or reappointment, each serving a term aligned with the city's academic calendar (September through August), appointed by the mayor and subject to confirmation by the City Council.

(Ord. No. 2009-04, 4-23-2009; Ord. No. 2019-15, 6-27-2019; Ord. No. 2019-22, 11-14-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-105.1. Protection of public shade trees and city trees.

(a) Public shade trees are protected under M.G.L. c. 87.

(b) A public shade tree or city tree may not be removed, pruned, or otherwise damaged—above or below ground—without written consent from the tree warden. For the purpose of this article, "damage" shall include unauthorized pruning, improper pruning, breaking or tearing of branches, wounding of the bark, excessive compaction of soil within a tree's critical root zone, breaking or tearing of roots, or unauthorized root pruning.

(c) Outdoor construction activity requiring a permit, on public or private property, shall require industry standard tree protection measures as directed by the tree warden or their designee, in accordance with the rules and regulations adopted by the tree warden.

(1) In the course of outdoor construction activity, a contractor shall prevent unauthorized, unnecessary, or improper wounding of public shade trees or city trees.

(2) Prior to the commencement of outdoor construction activity a contractor shall create a tree protection plan, subject to review, approval, and amendment by the tree warden or their designee.

(3) Approved tree protection measures shall be installed prior to commencement of outdoor construction activity, shall remain in place throughout, and shall be removed upon completion of outdoor construction activity.

(4) Tree protection measures deemed insufficient by the tree warden shall be modified as directed.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-105.2. Pruning of public shade trees and city trees.

(a) Permit required: A person may not prune a public shade tree or city tree without a pruning permit from the tree warden.

(b) Application for a pruning permit:

(1) An application must be made in writing on a form specified by the tree warden.

(2) The tree warden or their designee shall review an application for a pruning permit and respond no later than thirty business days after submission of a completed application.

(3) An application shall include the location, species, and DBH of the tree, an indication of the branches proposed for pruning or removal and their diameter at the point of pruning, and the rough percentage of the live crown area to be removed.

(4) There shall be no fee or charge to submit an application for a pruning permit.

(c) Pruning of a public shade tree or city tree must be carried out by an arborist with a current Massachusetts Arborist Association or International Society of Arboriculture credential and conform to specifications approved by the tree warden.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-106. Criteria for removal of public shade trees.

A public hearing may not be initiated under M.G.L. c. 87, § 3 to remove a healthy public shade tree unless the tree warden finds in writing that there is a public health, safety, or welfare basis for removing the public shade tree, including but not limited to hardship to a property owner, economic development, facilitating the development of affordable housing, pedestrian access enhancement, transportation improvement, or public project development. Nothing in this section shall be construed to prevent the cutting, trimming, or removal of trees in accordance with M.G.L. c. 87, § 5.

(Ord. No. 2017-04, 4-27-2017; Ord. No. 2018-09, 5-10-2018; Ord. No. 2019-15, 6-27-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-107. Notice requirements for removal of public shade trees.

In addition to notice under M.G.L. c. 87 § 3 for removal of a public shade tree, notice shall be given by the city by electronic notification when feasible and first-class mail to all property owners located within one hundred fifty feet of the trunk of the public shade tree proposed to be removed at least fourteen days before the public hearing. To the extent feasible, the city shall notify all residents within one hundred fifty feet of the trunk of the public shade tree proposed to be removed by flyering at least fourteen days before the public hearing. Notice shall also be given by placing notice on the city website and cable wheel at least fourteen days before the public hearing. In the event that a public hearing is initiated under M.G.L. c. 87 § 3 at the request of anyone other than the city, the requesting party shall pay for all costs of mailing and advertising, such costs to be determined by the city clerk. The city clerk may waive the costs if the requesting party demonstrates to the city clerk that payment of the fee would cause financial hardship. Guidelines for determining financial hardship shall be established by the city clerk. Applications for financial hardship shall be provided by the city clerk.

(Ord. No. 2019-15, 6-27-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-108. Tree replacement for public shade trees.

A healthy public shade tree removed at the request of a property owner or their agent shall be replaced no later than one year after the date of removal. Replacement trees shall be located at or near the location from which the tree was removed, and trees planted in a different neighborhood may not qualify as replacements. Replacement trees must conform to the standards for size, species, and planting established by the senior urban forestry and landscape planner.

(Ord. No. 2019-15, 6-27-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-109. Street tree stabilization fund.

(a) Establishment: There shall be a street tree stabilization fund ("the fund") which shall be held in a separate identifiable account, and administered in accordance with applicable provisions of General Laws. Any payments required by this article shall be deposited in the fund and shall be used in accordance with subsection (c) below.

(b) Payment for planting replacement public shade trees: Where a healthy public shade tree is removed at the request of a property owner or their agent, solely for reasons of private financial gain or personal preference, the requesting party shall make a contribution to the fund in an amount sufficient to pay for replacement trees as described in § 12-108. The amount shall be calculated using the schedule of costs established by the senior urban forestry and landscape planner.

(c) Maintenance of the fund: The fund shall be maintained in a separate account in accordance with state law. All sums deposited into the fund shall be used solely for the purpose of buying, planting and maintaining trees in the city. The senior urban forestry and landscape planner shall expend these funds for tree planting, transplanting, care, and other tree-related needs.

(Ord. No. 2019-15, 6-27-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-110. Compliance with state law.

A public shade tree hearing shall comply with the applicable requirements set forth in M.G.L. c. 87 § 3.

(Ord. No. 2019-15, 6-27-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-111. Criteria for removal of city trees.

(a) Purpose: The purpose of this section is to extend the public notice and public hearing requirements of the Massachusetts Public Shade Tree Law M.G.L. c. 87 to city trees.

(b) Applicability: This section shall apply exclusively to city trees as defined in § 12-102. Nothing in this section shall be construed to apply to public shade trees within the city, whose care, maintenance, trimming, planting, and removal are governed by the Public Shade Tree Law, M.G.L. c. 87, and the City of Somerville Code of Ordinances. The public notice and meeting requirements for public shade trees shall remain in full force and effect and are entirely unaffected by the language of this section.

(c) Cutting down or removal of trees: A person, including a city employee, the tree warden, or a deputy tree warden, may not cut down or remove a city tree without the tree warden first holding a public hearing.

(1) The tree warden, or their designee, shall post notice of the time and place of the public hearing in two or more public places in the city and upon the tree in question at least seven days prior to the public hearing. The notice shall identify the size, type, and location of the tree to be cut down or removed, and include a brief statement of the reason for the proposed action. Notice of a public hearing shall be sent to each city councilor, the members of the Urban Forestry Committee, and published on the city website.

(2) A brightly colored paper shall be placed upon a city tree stating the anticipated date on which cutting down or removal is expected to occur at least forty-eight hours prior to the cutting down or removal.

(3) Notwithstanding the provisions of this section, the tree warden or their designee may cut down or remove a tree which, in their opinion, is dead or dying or constitutes a threat to public health or safety.

(d) Exceptions: The tree warden, or their designee, may, without a public hearing, cut down or remove a city tree measuring less than one and one-half inches in diameter one foot from the ground.

(e) The following types of public projects, which have undergone a public process that includes public notification and public meetings, shall be exempt from the requirements of subsection (c) above:

(1) Park projects involving the development, renovation, or maintenance of parks and open spaces that are owned, leased, or licensed by the city, such as parks, community gardens, playgrounds, school yards, library lawns, cemeteries, public plazas, triangles, and squares; and,

(2) Capital improvement projects, which are major, non-recurring expenditures that generally meet all of the following criteria:

(A) M.G.L. c. 44 §§ 7 & 8 permit the city to issue bonds to finance the expenditure;

(B) the expenditure is a facility, object, or asset costing more than fifty thousand dollars; and,

(C) the expenditure will have a useful life of at least ten years for infrastructure, buildings, and parks.

(3) This exemption may only apply to a public project if the public process meets the following criteria:

(A) All public meetings at which cutting down or removal of trees is discussed were duly noticed and advertised including notice sent to all members of the Urban Forestry Committee.

(B) The public was provided reasonable opportunity to provide input regarding trees to be cut down or removed.

(C) Reasonable notice was posted on or around any trees to be cut down or removed at least two weeks prior to cutting down or removal taking place.

(Ord. No. 2019-15, 6-27-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-111.1. Protection of private significant trees during construction.

(a) Duty of care: Upon issuance of a permit by the Inspectional Services Department, Engineering Department, Department of Public Works, Water and Sewer Department, or Parking Department, the permit holder shall take reasonable precautions to protect significant trees and maintain them free from harm from the work associated with the issued permit.

(b) Outdoor construction activity requiring a permit shall require industry standard tree protection measures for any significant tree on the associated lot, as directed by the tree warden or their designee, in accordance with the rules and regulations adopted by the tree warden.

(1) In the course of an outdoor construction activity, a contractor shall prevent unauthorized, unnecessary, or improper damage to a significant tree.

(2) Prior to the commencement of an outdoor construction activity, a contractor shall create a tree protection plan, subject to review, approval, and amendment by the tree warden or their designee.

(3) Approved tree protection measures shall be installed prior to commencement of an outdoor construction activity, shall remain in place throughout, and shall be removed upon completion of an outdoor construction activity.

(4) Tree protection measures deemed insufficient by the tree warden shall be modified as directed.

(Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-112. Removal of private trees.

(a) Permit required: A person may not remove a significant tree from private property without a tree permit from the tree warden.

(b) Application for a tree permit:

(1) A property owner or their agent may apply for a tree permit on a form specified by the tree warden.

(2) The tree warden, or their designee, shall review applications for tree permits in accordance with the provisions of this article. The tree warden, or their designee, shall date stamp or otherwise record the date of filing of an application for a tree permit and shall complete the review of an application no later than thirty business days after the submission of a completed application. If review of an application is not completed within thirty business days and the applicant did not request a waiver of fees or replanting, the permit shall be considered issued.

(3) An application shall include a plan showing the location, species, and DBH of each tree on the property, and must indicate clearly which trees are to be removed.

(4) If replacement trees are to be planted, the plan shall indicate the planned location, species, and size of the replacement trees. To qualify as replacements, trees shall be planted on the same or adjacent lot, and must conform to standards for size, species, and planting established by the senior urban forestry and landscape planner. Trees may not qualify as replacement trees if planted in the adjacent right-of-way or otherwise located on public property.

(5) There shall be no fee or charge to submit an application for a tree permit.

(c) Conditions for granting a tree permit:

(1) Removal of significant trees: If a significant tree is to be removed, the plan must show planting of replacement trees with a total caliper equal to or greater than the DBH of the significant tree.

(2) Payment instead of replacement: Payment to the street tree stabilization fund may be made in lieu of planting some or all of the replacement trees, according to a cost schedule established by the senior urban forestry and landscape planner. Fees shall be based on the actual costs associated with purchasing, planting, and maintaining the city's public shade trees. Payment shall be made prior to the issuance of a permit.

(3) Request for waiver: An applicant for a tree permit may request a waiver of the requirement for replanting or payment.

(4) Hearing of request for waiver: The tree warden, or their designee, shall hear requests for waiver of the requirement for replanting or payment no later than sixty days after the date the application was received. The hearing may take place at a public meeting of the Urban Forestry Committee. The applicant shall have the opportunity to speak and to answer questions. The committee may, at the request of the applicant, make a recommendation to approve or deny the waiver. Examples of reasons supporting a waiver include:

(A) financial hardship associated with the care and upkeep of the trees;

(B) unreasonably high requirements for replacement or repayment;

(C) ongoing or reasonably foreseen damage or risk from the trees; or,

(D) desire to create a benefit to the public.

The tree warden shall consider the recommendation of the committee in deciding whether to grant the waiver. If the waiver is approved, a tree permit shall be issued no later than ten business days after the close of the hearing.

(5) Owner-occupants: The owner-occupant of a lot containing a one, two, or three family dwelling, who resides at that same property as demonstrated by issuance of, or good faith application for, a valid residential exemption shall, at their request, be granted a reduction in the amount of ninety percent of the requirements for replanting or payment with no need for a hearing.

(6) Departure of owner-occupant: Ifa reduction of the requirements for replanting or payment is granted and an owner ceases to reside at the address during the eighteen months following the issuance of a tree permit the reduction shall be revoked. The owner shall submit a replanting plan or make full payment of the fees that were waived no later than thirty days after ceasing to reside at the address. If the property has been sold, the new owner shall be subject to the requirements for replanting or payment unless eligible for an owner-occupant waiver under paragraph (5).

(d) Standards for replacement trees:

(1) Replacement trees must be planted no later than eighteen months after the date a tree permit is issued, or prior to transfer of property ownership, whichever comes first.

(2) Replacement trees shall be of the same or similar species and size as described in the application for the tree permit, and shall be planted according to standards for size, species, and planting established by the senior urban forestry and landscape planner.

(3) If trees of the size and species described in an application for a tree permit cannot be obtained at the time of planting, multiple smaller replacement trees may be planted with the authorization of the tree warden.

(4) If a replacement tree dies within eighteen months after the date of planting, it shall be replaced. The person planting the tree shall provide documentation of the date of the planting to the tree warden no later than fifteen days after the planting of a replacement tree.

(e) Exceptions to the tree permit requirement:

(1) Emergencies: If a tree is determined to be in a hazardous condition so as to immediately endanger the public health, safety, or welfare, or cause an immediate disruption of public services and require immediate removal without delay, the tree warden may give verbal authorization to remove the tree without obtaining a written permit as otherwise required by this section. The tree warden shall record a verbal authorization in writing e, and shall present the written notes at the next meeting of the Urban Forestry Committee.

(2) Waiver: The tree warden may waive the requirements of this section during the period of an emergency such as a hurricane, tornado, windstorm, flood, or similar threat to life and property.

(f) Safety of life and property: Notwithstanding the provisions of this section, a property owner may remove a significant tree, with written authorization from the tree warden, that is an immediate and pressing health or safety hazard or that is dead or dying. The tree warden may authorize immediate removal in writing, with written record to the Urban Forestry Committee as soon as practicable.

(Ord. No. 2019-15, 6-27-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Sec. 12-113. Enforcement.

(a) The provisions of this article may be enforced by the tree warden or a deputy tree warden by a noncriminal disposition pursuant to M.G.L. c. 40 § 21D. Each violation shall be deemed a separate offense and, in a case of a continuing violation, each day that a violation continues shall constitute a separate offense. Violation of any provision of this article shall be punished in accordance with § 1-11. The city may institute other remedies to abate violations of this article, as permitted by law, in addition to the imposition of the penalties prescribed by § 1-11.

(1) Failure to make payment of a fine may result in the revocation, suspension, or denial of any local license or permit, including renewals and transfers, pursuant to § 8-3, or a municipal charges lien being placed on the violator's property located within the city pursuant to the authority and provisions of Chapter 252 of the Acts of 1996.

(b) The following shall constitute a violation of this article:

(1) unauthorized pruning or removal of a public shade tree or city tree

(2) failure to comply with a condition contained in a tree or pruning permit;

(3) failure to implement, install, or comply with tree protection measures or follow a tree protection plan as directed by the tree warden;

(4) failure to protect a public shade tree, city tree, or private significant tree from harm from outdoor construction activity which results in a public shade tree, city tree, or private significant tree being damaged or removed;

(5) failure to replace a private significant tree;

(6) failure to make a payment into the street tree stabilization fund; or,

(7) failure to comply with a stop work order.

(c) If a private significant tree is removed without a permit for removal, each business day after removal shall constitute a separate violation until a complete permit application is filed. Upon the first violation of this section, an offender shall have thirty days from the date of the violation to submit a complete application for a tree permit before fines begin to accrue.

(d) When a private significant tree is removed without a tree permit and the tree cannot be measured at the standard four and one-half feet above the ground, other evidence may be used to determine whether it was a significant tree and to estimate the diameter. Evidence may include the diameter of the remaining stump, photographs, videos, orthoimagery, schematic drawings, or witness testimony. It shall be a rebuttable presumption that every private significant tree verified to have been removed for which neither the tree nor the stump remain shall be considered to be twenty-four inches in diameter.

(e) Stop work order: Upon notice from the tree warden or their designee that a person is removing or pruning a tree without a tree permit, that person shall immediately stop removal or pruning work. A stop work order shall be in writing and shall be mailed to the owner of record of the property and posted at the front of the property in a conspicuous location, and, if possible, hand delivered to the owner of the property, to

the owner's agent, or to the person doing the work. A stop work order shall state the conditions under which work may resume.

(f) Suspension or revocation: The tree warden may suspend or revoke a tree permit upon written notice to the permit holder that the permit holder failed to comply with this article or the conditions of the permit. Written notice shall be sent by certified or registered mail, return receipt requested, or hand delivered. The tree warden shall provide an opportunity for the permit holder to correct noncompliance and apply for a renewal of the tree permit or exemption permit upon compliance, where practicable.

(g) Injunctive relief: Whenever there exists reasonable cause to believe that a person is violating any applicable provision of this article, the city may institute a civil action for a mandatory or prohibiting injunction in a court of competent jurisdiction ordering the defendant to correct the unlawful condition or to cease the unlawful use of the property.

(Ord. No. 2019-15, 6-27-2019; Ord. No. 2025-05, 5-8-2025)

Effective on: 5/8/2025

Secs. 12-114, 12-115. Reserved.

Effective on: 6/27/2019

ARTICLE VII. SAFE STREETS ORDINANCE

(Ord. No. 2014-03, 5-8-2014; Ord. No. 2024-05, 6-13-2024)

Sec. 12-116. Purpose.

The primary aim of the Safe Streets Ordinance is to eliminate fatalities and injuries on city streets in accordance with the City's Vision Zero goals, and to enhance access, convenience, and comfort for all users of all ages and abilities, providing for equity in use between pedestrians (including people who make use of mobility aids), bicyclists, transit users, and motorists. The method for accomplishing this aim is the design, operation, improvement, and maintenance of the transportation network to create a connected network of facilities accommodating each mode of travel, consistent with and supportive of the local community. The ordinance recognizes that all streets are different and that the needs of various users will need to be balanced in a flexible manner to achieve complete streets.

(Ord. No. 2014-03, 5-8-2014; Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Sec. 12-116.1. Definitions.

(Ord. No. 2024-05, 6-13-2024)

Bicycle lane miles means the combined distance of separated bicycle facilities. A two-way facility or one-way facilities in both directions on a one-mile street segment shall count for two bicycle lane miles. A one-way facility on a one-mile one-way street segment shall count for one bicycle lane mile. If a gap in a separated bicycle facility of any distance occurs for any reason other than those specified in the definition of the particular separated bicycle facility, the distance of the gap shall not be counted toward bicycle lane miles.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Connectivity means the provision of a permanent separated bicycle lane system that reflects desired routes between all major origins and destinations in the City.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Improvements means the construction of a new public street or the reconstruction of an existing public street, including but not limited to full-depth reconstruction, widening or narrowing of roadway, or realignment of street or intersection. Improvements shall not include routine maintenance, including but not limited to activities to repair damaged pavement, provide access to persons with disabilities, or to protect or improve other municipal assets (e.g. trees and utilities), provided that existing bicycle lanes shall be restored to existing conditions or better.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Permanent separated bicycle lane means a bicycle lane separated from motor vehicle traffic by a permanent vertical barrier that shall remain in place year-round, including but not limited to granite barriers, concrete barriers, or raised curbs, provided, however, that the bicycle lane need not be separated from motor vehicle traffic by a permanent vertical barrier for short stretches to accommodate crosswalks, curb cuts, drainage, accessible parking and loading, intersections, and public transportation. Existing bicycle lanes may be temporarily removed during city-conducted or city-permitted construction or maintenance, so long as they are restored to existing conditions or better. Further refinement of the definition and requirements of permanent separated bicycle lanes shall be provided by design guides created by the City of Somerville and incorporated into this definition, including any updates and name changes.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Public transportation means bus and shuttle stops as defined by Massachusetts General Law, including those requiring municipal licenses as defined by MGL Ch. 159A § 1.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Priority Network means the subset of bicycle facilities targeted for priority installation in the Somerville Bicycle Network Plan (April 2023). It shall include any updates to the priority network, regardless of potential name changes.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Quick-build separated bicycle lane means a bicycle lane separated from motor vehicle traffic by flexible delineator posts, on-street parking, or a similar separator, that shall remain in place year-round, provided, however, that the bicycle lane need not be separated from motor vehicle traffic for short stretches to accommodate crosswalks, curb cuts, accessible parking and accessible loading, intersections, and public transportation, and provided further, that existing bicycle lanes may be temporarily removed during city-conducted or city-permitted construction or maintenance, so long as they are restored to existing conditions or better.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Separated bicycle facilities means either a permanent separated bicycle lane or a quick-build separated bicycle lane.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Separated network means the proposed set of bicycle facilities identified in the Somerville Bicycle Network Plan, or any plan superseding it, provided, however, that any such plan shall maintain connectivity.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Somerville Bicycle Network Plan means the plan dated April 2023 and approved by the city council on October 05, 2023 to create a framework for developing a network of complete streets. It shall include any update to the existing plan, regardless of potential name changes.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Vision Zero Action Plan means the plan published the City of Somerville in April 2020 with a strategy to eliminate deaths and serious injuries from the transportation system and specific actions to be taken to achieve that goal. It shall include any update to the existing plan, regardless of potential name changes.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Sec. 12-116.2. Designing complete streets.

(a) The City of Somerville will incorporate complete street elements into public transportation projects in order to provide appropriate accommodation for bicyclists, pedestrians, transit users and persons of all abilities, while promoting safe operation for all users, in comprehensive and connected networks in a manner consistent with, and supportive of, the surrounding community.

(b) As feasible, City of Somerville shall incorporate complete streets infrastructure into existing streets to enhance the safety and convenience of users, construct and enhance the transportation network for each category of users, and foster economic development and new employment.

(c) The City of Somerville recognizes that complete streets may be achieved through single elements incorporated into a particular project or incrementally through a series of smaller modifications or maintenance activities over time.

(d) The City of Somerville shall approach every transportation project and program as an opportunity to make streets and the transportation network better for all users.

(e) The City of Somerville shall conduct regular education campaigns to inform all roadway users about city and state traffic regulations and provide tips for traveling safely. This work shall be done by the office of strategic planning and community development, with approval from communications, parking, and department of public works, and in cooperation with other departments, agencies, jurisdictions and associations.

(f) The City of Somerville shall follow the most current version of the National Association of City Transportation Officials Street Design Guide.

(g) Bicycle, pedestrian, and transit facilities shall be incorporated, consistent with this ordinance, in all improvements.

(h) All initial planning and design studies, health impact assessments, environmental reviews, and other project reviews for projects requiring funding or approval by City of Somerville shall (1) evaluate the effect of the proposed project on safe travel by all users, and (2) identify measures to mitigate any adverse impacts on such travel that are identified.

(i) In design guidelines, City of Somerville shall coordinate templates with street classifications and revise them to include complete streets infrastructure, such as bicycle lanes and cycle tracks, sidewalks, street crossings, curb geometries, and planting strips. The design of new or reconstructed facilities should anticipate and support likely future demand for bicycling, walking and transit facilities.

(j) Nothing in this article is intended to impose any additional civil liability upon the City of Somerville other than that which is imposed by existing law.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Sec. 12-116.3. Bicycle lane installation.

(a) Whenever improvements are made to a public street, the City of Somerville shall cause such improvements to comply with the Somerville Bicycle Network Plan; provided, that if improvements are made to a segment of a public street designated for a protected bike lane in the Somerville Bicycle Network Plan, a permanent separated bicycle lane shall be installed along that segment. The directionality of such permanent separated bicycle lane shall be as specified in the Somerville Bicycle Network plan or greater.

(b) Full compliance with the provisions of (a) is not required where the City of Somerville can demonstrate through a written alternatives analysis, to be made public, why it is impractical to comply with the provisions of (a) above, and where there will be a loss of connectivity if the provisions of (a) are not complied with, how connectivity could be otherwise advanced, if possible. Full compliance with the provisions of (a) will be considered impracticable only in those rare circumstances where the City of Somerville determines that the characteristics of the physical features or usage of a street, or financial constraints of full compliance prevent the incorporation of a permanent separated bicycle lane with directionality as specified in the Somerville Bicycle Network plan or greater.

(c) By no later than December 31, 2030, the City of Somerville shall complete the installation of all bicycle lane miles designated for protected bike lanes in the priority network of the Somerville Bicycle Network Plan (April 2023), provided, however, that such bicycle lane miles shall be separated bicycle facilities, and provided further, that no less than 29 miles of separated bicycle facilities shall be installed by December 31, 2030.

(d) If any separated bicycle facilities are proposed to be permanent separated bicycle lanes, the requirements of (c) shall be satisfied so long as the construction of such separated bicycle facilities has commenced prior to the deadline established by (c). In addition, the City of Somerville shall have the discretion to extend the deadline set out in (c) by no more than one year if the City of Somerville deems it infeasible to meet the deadline, provided, however, that the City of Somerville shall submit to the city council a report detailing why such extension is necessary by no later than March 1, 2029.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Sec. 12-116.4. Accessible parking.

If the installation of any separated bicycle facility includes a reduction in the number of available on-street parking spaces, the city shall not reduce the number of accessible spaces reserved for persons with disabilities by making them available for general use. Wherever possible, and where it will not unreasonably limit available parking for other vehicles or reduce the safety of road users, the number of accessible parking spaces shall be increased.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Sec. 12-116.5. Pedestrian and transit improvements

(a) The City of Somerville shall be obligated to meet the quantifiable goals for pedestrian and transit infrastructure detailed in the Vision Zero Action Plan and the Somerville ADA Title II Transition Plan, including any subsequent updates to these plans.

(b) Full compliance with the provisions of (a) is not required where the City of Somerville can demonstrate through a written alternatives analysis, to be made public, why it is impractical to comply with the provisions of (a) above and how pedestrian and transit infrastructure could be otherwise advanced, if possible. Full compliance with the provisions of (a) will be considered impracticable only in those rare circumstances where the City of Somerville determines that the characteristics of the physical features or usage of a street, or financial constraints prevent full compliance.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

Sec. 12-116.6. Reporting

(a) By no later than March 1, 2025, the City of Somerville shall submit a report to the city council detailing progress towards meeting the requirements set forth in this ordinance. Thereafter, a report. shall be given to the city council no later than 12 months from the date of the preceding report. Such report shall include the following:

(1) Details on separated bicycle facilities installed in the previous year's construction season and separated bicycle facilities planned for installation during the current year's construction season.

(2) A plan to install no less than 3 bicycle lane miles in the current year's construction season and a multi-year plan for installing all bicycle lane miles of separated bicycle facilities designated for protected bike lanes in the priority network of the Somerville Bicycle Network Plan.

(3) A forecasted expenditure for installing such bicycle lane miles.

(4) An update regarding the City's progress on the quantifiable goals for pedestrian and transit infrastructure detailed in the Vision Zero Action Plan and the Somerville ADA Title II Transition Plan.

(b) Installation of separated bicycle facilities, including the total of bicycle lane miles installed under the Somerville Bicycle Network Plan, shall be shown on a publicly accessible website. Such website shall also track exactly where those bicycle lane miles were installed, and the distance of each contiguous segment of bicycle lane miles installed. Such website shall be established by no later than March 1, 2025, and updated at least twice yearly thereafter. All other reports and updates required by this ordinance shall also be uploaded to such a website.

(Ord. No. 2024-05, 6-13-2024)

Effective on: 6/13/2024

ARTICLE VIII. ORDINANCE TO SAFEGUARD VULNERABLE ROAD USERS

(Ord. No. 2017-05, 5-11-2017)

Sec. 12-117. Purpose.

Vehicles covered by this article shall be so constructed and/or equipped as to offer effective protection to vulnerable road users against the risk of falling under the sides of the vehicle and being caught under the wheels, and against the risk of being struck due to limited visibility from the operator's viewpoint and the lack of side-visible turn signals.

(Ord. No. 2017-05, 5-11-2017)

Effective on: 5/11/2017

Sec. 12-118. Definitions.

The words defined in this section shall have the meanings set forth below whenever they appear in this article unless the context in which they are used clearly requires a different meaning, or a different definition is prescribed for a particular paragraph or provision.

Approval of a vehicle means the approval of a complete vehicle type with regard to its lateral protection.

Effective on: 5/11/2017

City means the City of Somerville.

Effective on: 5/11/2017

Conventional cab means a large vehicle configuration in which at least more than half of the engine length is forward of the foremost point of the windshield base and the steering wheel hub is in the forward quarter of the vehicle length.

Effective on: 5/11/2017

Convex mirrors mean door-mounted, wide-angle mirrors that enable the operator to see objects along the left and right sides of the truck in accordance with subsection 12-121(b).

Effective on: 5/11/2017

Cross-over mirrors and cross-view mirrors are equivalent terms that mean either fender- or hood-mounted mirrors that enable the operator to see objects in the area immediately in front of a conventional cab hood in accordance with subsection 12-121(c) and optionally also on the left and right sides of the truck cab.

Effective on: 5/11/2017

Department(s) shall mean those City of Somerville departments, authorities, agencies, commissions and any other instrumentality acting on behalf of another ("awarding authorities") under the supervision of the mayor or persons appointed by him/her.

Effective on: 5/11/2017

Contract means the written agreement between a vendor and a department to do any work or to make any purchase.

Effective on: 5/11/2017

Gross vehicle weight rating (GVWR) means the gross vehicle weight rating established by a manufacturer when applied to a motor vehicle, trailer, semi-trailer or semi-trailer unit, including the gross combination weight rating, if any, when applied to a semi-trailer unit or to a tractor-trailer combination, pursuant to MGL Chapter 90, Section 1.

Effective on: 5/11/2017

Large vehicle means any Class 3 or above motor vehicle, trailer, semi-trailer or semi-trailer unit, with a gross vehicle weight rating (GVWR) exceeding 10,000 pounds, except an ambulance, fire apparatus, low-speed vehicle with maximum speed under 15 miles per hour, or agricultural tractor.

Effective on: 5/11/2017

Lateral protective device, side underride guard, and side guard are equivalent terms that mean an apparatus installed on large vehicles between the front and rear wheels to help prevent injuries to vulnerable road users, particularly from falling underneath the vehicle.

Effective on: 5/11/2017

Mayor means the mayor or persons designated by him/her.

Effective on: 5/11/2017

Otherwise qualified means any vendor that meets all other criteria for the award of a contract.

Effective on: 5/11/2017

Vulnerable road users mean pedestrians, bicyclists, wheelchair users, moped riders, motorcyclists, maintenance, utility, police, and emergency first-responder workers, or other persons using the road in such a way that they are liable to fall under the sides of the vehicle or to be caught under the wheels.

Effective on: 5/11/2017

Vendor means any firm, vendor, contractor, or supplier of goods and/or services to the City of Somerville, and any of its agents or subcontractors.

Effective on: 5/11/2017

(Ord. No. 2017-05, 5-11-2017)

Effective on: 5/11/2017

Sec. 12-119. Requirements.

When any officer or board in charge of a department or other awarding agency of the city issues requests for proposals or other invitations for bids to do any work or make any purchase, such request for proposal or other invitation for bids must require any response to contain a representation acknowledging that a prospective vendor has installed (or will install prior to commencing work for the contract) side guards, cross-over mirrors or equivalent blind spot countermeasures, convex mirrors or equivalent blind spot countermeasures, side-visible turn signals, and appropriate warning signage, in accordance with this article, on all large vehicles it uses or will use within the City of Somerville in connection with the contract.

(Ord. No. 2017-05, 5-11-2017)

Effective on: 5/11/2017

Sec. 12-120. Policy implementation.

Every large vehicle used by a vendor in connection with a contract must be equipped with convex mirrors or equivalent blind spot countermeasures, side-visible turn signals, decals, and side guards affixed to the sides of such vehicles in a manner consistent with this section and with rules and regulations further promulgated by the office of strategic planning and community development. Every large vehicle with a conventional cab configuration used by a vendor in connection with a contract shall furthermore be equipped with cross-over mirrors or equivalent blind spot countermeasures. As future technical innovations to improve safety for vulnerable road users become available, the city will make efforts to test and update these requirements.

(Ord. No. 2017-05, 5-11-2017)

Effective on: 5/11/2017

Sec. 12-121. Technical specifications.

(a) *Lateral protective devices.* Large vehicles must be constructed or equipped in such a way as to offer, throughout their length, effective protection to vulnerable road users against the risk of falling under the side of the vehicle and being caught under the wheels. This requirement will be considered satisfied either:

(1) If the vehicle is equipped with side guards in accordance with the current requirements, as may be amended, of the US Department of Transportation Volpe Side Guard Standard (the “Volpe Side Guard Standard”); or

(2) If the vehicle is so designed and/or equipped at the side that, by virtue of its shape and characteristics, its component parts can be incorporated and/or regarded as replacing the side guards in accordance with the current Volpe Side Guard Standard, as may be amended.

Components whose combined function satisfies the above requirements are considered to form a lateral protective device.

(b) *Convex mirrors.* Either through convex mirrors or equivalent blind spot countermeasures, large vehicles must be equipped so as to enable the operator of the large vehicle to see all points on an imaginary horizontal line which:

(1) Is three feet above the road; and

(2) Is one foot directly forward from the midpoint upon the longitudinal axis of the front of such large vehicle; and extends the full width of such large vehicle.

(c) *Cross-over mirrors.* Either through cross-over mirrors or equivalent blind spot countermeasures, large vehicles must be equipped so as to enable the operator of any large vehicle with a conventional cab to see:

(1) Any person or object three feet tall passing one foot in front of the vehicle; and

(2) The area from the front bumper to where direct vision is possible.

(d) *Side-visible turn signals.* Large vehicles must be equipped with at least one turn signal lamp on each of the left and right vehicle sides that is visible from any point to the left and right of such large vehicle along the vehicle's full length.

(e) *Safety decals.* Large vehicles must be equipped with a minimum of three reflective safety decals on the rear and sides that warn pedestrians and cyclists of blind spots:

(1) Decals should be "safety yellow" in color;

(2) Decals should include language or images warning of the blind spot locations on the vehicle. The signage should warn of the hazard and advise other road users to take appropriate action, for example "Blind Spot – Take Care"; and

(3) Decals should be placed, when possible, on or near the side guards.

(Ord. No. 2017-05, 5-11-2017)

Effective on: 5/11/2017

Sec. 12-122. Compliance and enforcement.

(a) Non-compliance with the provisions of this article by a vendor shall be enforced in accordance with Somerville Code of Ordinances section 1-11(b). Furthermore, non-compliance with the provisions of this article by a vendor shall be grounds for termination of the contract.

(b) This article shall be enforced by the fleet division in the department of public works and the Somerville Police Department. The Somerville Police Department and the fleet division shall determine non-compliance with the provisions of this article and any applicable regulations and may make recommendations, if any, to the contracting department.

(c) The fleet division shall issue, for a vendor's large vehicles, a compliance certification through a vehicle inspection of convex mirrors, cross-over mirrors, lateral protective devices, side-visible turn signals, and decals prior to the date vendor begins work on a contract. A fee to cover the costs associated with inspection will be determined by the fleet division and passed on to the vendor.

(d) Vehicle compliance will be certified with a sticker denoting the year of inspection. Inspections must be updated biennially. Non-compliant vehicles must be re-inspected prior to being used by a vendor in connection with a contract.

(e) The fleet division shall issue an annual report to be filed with the mayor and the city clerk and transmitted by the clerk to the city council on the actions undertaken by the fleet division on enforcement of this article no later than May 31 of each year. The annual written report shall include, but not be limited to, the following items for the 12-month period prior to the report's due date:

(1) The number of vehicles this article applied to;

(2) The total number of inspections performed by inspectors and any subsequent violations of this article;

(3) The number of waivers and exemptions requested, the number granted, and the justification for each waiver or exemption requested or approved;

(4) Evaluation of safety performance on equipped vehicles from Somerville Police Department reports of incidents; and

(5) Any financial costs to the city associated with this article.

(Ord. No. 2017-05, 5-11-2017)

Effective on: 5/11/2017

Sec. 12-123. Severability.

The provisions of this article are severable and if any provision, or portion thereof, should be held to be unconstitutional or otherwise invalid by any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect the remaining provisions, which shall remain in full force and effect.

(Ord. No. 2017-05, 5-11-2017)

Effective on: 5/11/2017

Sec. 12-124. Waiver/exemptions.

If a vendor determines that extenuating circumstances exist which prevent the vendor from complying with this article, then such vendor may request an exemption from compliance with its provisions. Waivers are issued at the sole discretion of both the fleet division and purchasing department of the City of Somerville.

(Ord. No. 2017-05, 5-11-2017)

Effective on: 5/11/2017

Sec. 12-125. Effective date.

(a) This article shall take effect 180 days after passage and shall apply to all new contracts awarded, to all renewal terms of existing contracts executed after that date, and to all contracts amended to include the applicability of this article. This article applies to any subcontractors under such contracts.

(b) City of Somerville fleet vehicles that are large vehicles as defined herein will be required to comply with the provisions of this article.

(c) The office of strategic planning and community development shall issue rules and regulations to implement the provisions of this article, including, without limitation, a process by which waivers may be granted, upon its taking effect.

(Ord. No. 2017-05, 5-11-2017)

Effective on: 5/11/2017

Secs. 12-126-12-140 - Reserved.

Effective on: 11/14/2019

ARTICLE IX. SMALL WIRELESS FACILITIES IN PUBLIC RIGHTS-OF-WAY

(Ord. No. 2019-23, 11-14-2019)

Sec. 12-141. Purpose.

The purpose of this article is to provide a uniform and comprehensive set of standards for permitting, developing, siting, installing, designing, operating and maintaining small wireless telecommunications facilities ("small wireless facilities") in the public right-of-way within the city's jurisdiction.

(Ord. No. 2019-23, 11-14-2019)

Effective on: 11/14/2019

Sec. 12-142. Definitions.

As used in this article and in the City of Somerville design standards, the following terms shall be defined as follows:

Abandoned. The cessation of use of a small wireless facility.

Effective on: 11/14/2019

Antenna. An apparatus designed for the purpose of emitting radio frequency signals from a fixed location pursuant to the Federal Communications Commission authorization, for the provision of wireless service. For purposes of this definition, the term antenna does not include an unintentional radiator, mobile station, antenna designed for amateur radio use, or satellite dish for residential or household purposes.

Effective on: 11/14/2019

Antenna equipment. Equipment, switches, wiring, cabling, power sources, shelters or cabinets associated with an antenna, located at the same fixed location as the antenna, and, when collocated on a structure, is mounted or installed at the same time as such antenna.

Effective on: 11/14/2019

Applicant. Any person who submits an application and is or is acting on behalf of a wireless services provider or wireless infrastructure provider.

Effective on: 11/14/2019

Collocate. Mount or install an antenna on a structure, or modify a structure for the purpose of mounting or installing an antenna. "Collocation" has a corresponding meaning.

Effective on: 11/14/2019

Design standards. Standards promulgated by the department of public works and planning department for installation of a small wireless facility, in accordance with applicable Federal Communications Commission rules and regulations, that are reasonable, no more burdensome than those applied to other types of infrastructure deployments, and objective and published in advance.

Effective on: 11/14/2019

Rights-of-way or ROW. The area on, below, or above a public utility easement, roadway, highway, street, sidewalk, alley, or similar property, but not including a federal interstate highway.

Effective on: 11/14/2019

Small wireless facility. A facility that meets each of the following conditions:

(a) The facility is mounted on a structure 50 feet or less in height including the antenna, or is mounted on a structure no more than ten percent taller than other adjacent structures, or does not extend the existing

structure on which it is located to a height of more than 50 feet or by more than ten percent, whichever is greater;

(b) The antenna, excluding associated antenna equipment, is no more than three cubic feet in volume;

(c) All other wireless equipment associated with the structure, including the wireless equipment associated with the antenna and any pre-existing associated equipment on the structure, is cumulatively no more than 28 cubic feet in volume;

(d) The facility does not require antenna structure registration;

(e) The facility is not located on tribal lands; and

(f) The facility does not result in human exposure to radio frequency in excess of the applicable safety standards specified in 47 C.F.R. 1.1307(b).

Effective on: 11/14/2019

Structure. A pole, tower, base station, or other building, whether not it has an existing antenna facility, that is used or to be used for the provision of wireless service.

Effective on: 11/14/2019

Wireless provider. Any individual, corporation, limited liability company, partnership, association, trust, or other entity or organization, authorized to provide communications service in the state, that builds or installs wireless communication transmission equipment and/or small wireless facilities, or provides to the public wireless services using radio frequency signals.

Effective on: 11/14/2019

(Ord. No. 2019-23, 11-14-2019)

Effective on: 11/14/2019

Sec. 12-143. Approval required.

No wireless provider shall place, construct, erect, modify, mount, attach, operate or maintain a small wireless facility within the city or within any right-of-way in the city without first obtaining approval from the city council.

(Ord. No. 2019-23, 11-14-2019)

Effective on: 11/14/2019

Sec. 12-144. Application and approval process.

(a) All small wireless facility applications shall be submitted to the city clerk in accordance with policies and procedures set forth by the city. A public hearing shall not be required unless a new pole is installed. The small wireless facility permit application shall be made by the wireless provider or its duly authorized representative.

(b) The city reserves the right to reasonably require, in its sole discretion, a supplemental review by independent experts of any application for a small wireless facility under this section. All reasonable costs of such review shall be borne by the applicant, in addition to scheduled fees. Whether based on the results of the supplemental review or the city's own review, the city may require changes to or supplementation of the application.

(c) No approval granted under this article shall confer any exclusive right, privilege, license, or franchise to occupy or use the public right-of-way for delivery of telecommunications services or any other purpose.

(d) Unless construction has actually begun and is diligently pursued to completion at that point, no permit for construction issued under this article shall be valid for more than 12 months unless the mayor and applicant agree to an extension and all required fees are paid for the term regardless of construction.

(e) Routine maintenance shall not require submittal of a new application, although it shall require all necessary permits for work to be performed.

(f) Any request for modification of an existing wireless tower or base station determined by the department of public works commissioner to not substantially change the physical dimensions of such tower or base station, as set forth in 47 C.F.R. section 1.40001, may be approved by the department of public works commissioner in accordance with the design standards. the design standards shall not apply to the extent that they conflict with the criteria for substantial change as set forth in 47 C.F.R. section 1.4001. Counsel shall be notified by the department of public works when such request is approved.

(g) A denial of an application may be based on criteria including but not limited to any of the following:

(1) Inadequate capacity of the pole or mounting structure;

(2) Demonstrative safety issues;

(3) Failure to meet applicable engineering standards;

(4) Failure to meet the design standards, unless the applicant can demonstrate that such design standards are not technically feasible for that particular installation or that there is no reasonable alternative;

(5) Failure of the applicant to comply with all applicable laws, rules, regulations, or other requirements;

(6) There is another nearby pole that is a reasonable alternative; and/or

(7) Any other legally valid reason to deny such application.

(Ord. No. 2019-23, 11-14-2019)

Effective on: 11/14/2019

Sec. 12-145. Fees and annual renewal.

(a) Applications for small wireless facilities shall be accompanied by fees as established by the city council.

(b) Each year on January 1, the wireless provider shall submit an affidavit to the department of public works listing by location, all installations it owns within the city and certifying which installations remain in use and covered by the applicant's insurance, which installations it has abandoned, and which installations are no longer in use. The wireless provider shall at that time pay any necessary payments required by the city. If a wireless provider fails to make the payments required by the city, the wireless provider's small wireless facilities shall be deemed abandoned and the city may, at its sole option, remove all or any portion of them, or take other action as authorized by law.

(Ord. No. 2019-23, 11-14-2019)

Effective on: 11/14/2019

Sec. 12-146. Removal, modification or abandonment.

(a) No less than 90 days following written notice from the city, the wireless provider shall, at its own expense, protect, support, temporarily or permanently disconnect, remove, relocate, change or alter the position of any small wireless facilities within the rights-of-way whenever the city has determined that such removal, relocation, change or alteration, is reasonably necessary for the construction, repair, maintenance, or installation of any city improvement in or upon, or the operations of the city in or upon, the rights-of-way. If the wireless provider fails to comply with the written notice, the city may perform the work and recover the actual and reasonable expenses of doing so from the wireless provider, its successors or assigns.

(b) The city retains the right to cut or move any small wireless facility located within the rights-of-way of the city in the event of an emergency, as the city may determine to be necessary, appropriate or useful in response to any imminent danger to public health, safety, or property. If circumstances permit, the city shall notify the wireless provider and provide the wireless provider an opportunity to move its own facilities

prior to cutting or removing a facility and shall notify the wireless provider promptly after cutting or removing a small wireless facility. If the city performs work under this section, it may recover the actual and reasonable expenses of doing so from the wireless provider, its successor or assigns.

(c) A wireless provider is required to notify the city of abandonment of any small wireless facility no less than 30 days prior to abandonment. Following receipt of such notice, the city may direct the wireless provider to remove all or any portion of the small wireless facility that the city determines to be in the best interest of the public health, safety and welfare to remove. If the wireless provider fails to notify the city of the abandonment or fails to remove the abandoned facility within 60 days of such notice, the city may undertake to do so and recover the actual and reasonable expenses of doing so from the wireless provider, its successors or assigns.

(d) The wireless provider shall repair all damage to city property caused by the activities of the wireless provider and shall return the city property to its functional equivalence before the damage pursuant to competitively neutral, reasonable requirements and specifications. If the wireless provider fails to make the repairs within 60 days of such notice, the city may affect those repairs and recover the actual and reasonable expenses of doing so from the wireless provider, its successors or assigns.

(Ord. No. 2019-23, 11-14-2019)

Effective on: 11/14/2019

Sec. 12-147. Exception to applicability.

Nothing in this article shall authorize a wireless provider to locate small wireless facilities on property owned by a private party, property that is not located within the right-of-way, or a privately owned utility pole or wireless support structure within a right-of-way without the consent of the property owner.

(Ord. No. 2019-23, 11-14-2019)

Effective on: 11/14/2019

Sec. 12-148. Installation specifications.

All small wireless facilities must be constructed, installed, and operated in accordance with the plans and specifications included in the application or as otherwise approved by the city council, as well as the design standards. In addition to the design standards, all wireless installations must meet the following requirements, unless otherwise prohibited by law:

(a) No installation shall be placed less than 15 feet from a residence's window, door opening, porch or balcony.

(b) In residential districts, as set forth in the zoning ordinance, the small wireless facility applicant shall use a passive cooling system. In the event that a fan is needed, the small wireless facility applicant shall use a cooling fan with the lowest noise profile commercially available. In any event, no small wireless facility shall emit noise greater than 40 dBA at the property line at any time.

(c) No installation shall be placed where, in the determination of the city, it would limit the city's ability to plant future street trees based upon any existing city standards or guidelines for planting of street trees.

(d) Pole-mounted equipment minimum heights to the bottom of the equipment shall be 15 feet above sidewalk elevation.

(e) Antennas shall be limited to snug-mount, canister-mount, and concealed, and shall be mounted at the top of the pole with a diameter of no more than six inches greater than the diameter of the pole. Where conditions do not permit a top mounted antenna, the antenna may be side mounted with a minimum height of 15 feet above sidewalk elevation.

(Ord. No. 2019-23, 11-14-2019)

Effective on: 11/14/2019

Sec. 12-149. Insurance, bonds and indemnification.

(a) All wireless providers shall maintain at all times insurance with the following minimum coverages: General liability insurance in an amount not less than $1,000,000.00 per occurrence and $2,000,000.00 in the aggregate, and umbrella insurance in an amount not less than $5,000,000.00. The city must be an additionally insured party. All insurance carriers shall carry an A.M. Best rating of "A-" or better. Such insurance shall provide for the waiver by the insurance carrier of any subrogation rights against the city, its agents, servants and employees.

(b) Upon approval of the application, the wireless provider shall be required to post bond in the amount of $5,000.00 for each small wireless facility, each bond to be held and maintained until the removal of the small wireless facility by the wireless provider or by the city as a guarantee to secure the applicant's compliance with all applicable provisions of this article.

(c) To the fullest extent allowed by law, any wireless provider constructing, installing, operating, repairing, maintaining and using a small wireless facility shall indemnify, defend and hold harmless the city, and its officials, agents, and employees from and against all suits, actions or claims of any character brought because of any injury or damage received or sustained by any person, persons or property arising out of, or resulting from, said wireless provider's breach of any provision of law, including but not limited to standard specifications and the permit manual, or any asserted negligent act, error or omission of the wireless provider, or its agents or employees, arising from or relating to its small wireless facility. The indemnifications required hereunder shall not be limited by reason of the specification of any particular insurance coverage for any permit. Each wireless provider's obligations under this provision shall not terminate with the expiration or termination of its permit, but shall survive it.

(Ord. No. 2019-23, 11-14-2019)

Effective on: 11/14/2019

Sec. 12-150. Compliance with all applicable laws.

The wireless provider shall comply with all applicable local ordinances, including but not limited to the noise ordinance, as well as the Massachusetts building, plumbing and electrical codes, uniform building, fire electrical, plumbing, or mechanical codes adopted by a recognized national code organization or local amendments to those codes, and the National Electric Code, National Electric Safety Code, and the rules, regulations, provisions of the Federal Communications Commission, the Occupational Safety and Health Administration, and any other state or federal agency regulating wireless communications.

(Ord. No. 2019-23, 11-14-2019)

Effective on: 11/14/2019

Secs. 12-151-12-170. Reserved.

Effective on: 3/25/2021

ARTICLE X. NATIVE PLANTING ORDINANCE

(Ord. No. 2021-05, 3-25-2021)

Sec. 12-171. Title.

This article shall be known and may be cited as "City of Somerville Native Planting Ordinance."

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-172. Purpose.

The purpose of these regulations is to establish minimum standards for the use of native vegetation by the city. The city recognizes the significant benefits of establishing and protecting native vegetation for species conservation, ecological restoration, and combating the climate crisis and, therefore, the necessity to maximize the use of native vegetation by the city.

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-173. Intent.

It is the intent of this article that these minimum landscape requirements be incorporated in order to combat the climate crisis, species extinction, and global warming, and to promote the public health, safety, and welfare by:

(a) Acknowledging that pollination is an essential ecological survival function, and without native plants and the pollinators that depend on them, the human race and all of earth's terrestrial ecosystems will not survive;

(b) Doing our part to reverse the massive decline in native pollinator populations from widespread use of pesticides in agribusiness, loss of habitat from development, and from our insistence on non-native plants in landscaping;

(c) Protecting and promoting genetically diverse and appropriate native vegetation;

(d) Promoting microhabitats in urban areas for the conservation of wildlife by establishing new, and maintaining and connecting existing, wildlife habitat;

(e) Creating larger, more connected plant populations and helping ensure the future of native plant species by increasing their ability to migrate in response to changes in climate;

(f) Promoting public health through the long term, widespread adoption of diverse native plantings; and

(g) Educating residents on the importance of native plant species and native pollinators to the ecosystem.

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-174. Definitions.

Bioswales means vegetated linear channels designed to concentrate and convey stormwater runoff while removing debris and pollution.

Effective on: 3/25/2021

Extensive green roof shall mean a layer of vegetation planted over a waterproofing system that is installed on top of a flat or slightly–sloped roof, that has a shallow growing medium of less than six inches with a modest roof load, limited plant diversity, minimal watering requirements, and is often not accessible.

Effective on: 3/25/2021

Invasive plant means a plant that is both non-native and able to establish on many sites, grow quickly, and spread to the point of disrupting plant communities or ecosystems. For purposes of this article, any plant on the USDA Introduced, Invasive, and Noxious Plants list that is listed on the federal list or on any state list east of the Mississippi River is an invasive plant. This includes, but is not limited to, all plants listed on the Massachusetts Prohibited Plant List as published by the Massachusetts Department of Agricultural Resources. The city may, at the city's discretion, also refer to lists developed by nonprofit, governmental, or educational organizations or other subject-matter experts, particularly focused on invasive plants in states east of the Mississippi River.

Effective on: 3/25/2021

Native plant means a plant that is a part of the balance of nature that has developed over hundreds or thousands of years in a particular region or ecosystem. For the purposes of this ordinance, a native plant or "native species" is a plant with origins east of the Mississippi River per the USDA plant database, with a preference for species from the US Environmental Protection Agency Ecoregion Level III Northeastern Coastal Zone (#59), and secondary preference for Northeastern Highlands (#58) and the Atlantic Coastal Pine Barrens (#84).

Effective on: 3/25/2021

Non-native plant means a plant introduced with human help (intentionally or accidentally) to a new place or new type of habitat where it was not previously found. For the purposes of this ordinance, a non-native plant is any plant with origins west of the Mississippi River or in other continents.

Effective on: 3/25/2021

Other city-owned property shall include all other property owned and maintained by the city which does not fall within one of the other specifically defined categories for property listed within this article.

Effective on: 3/25/2021

Park means a civic space type designed for active and passive recreation, with its character defined by the uses and features provided to meet the needs of different user groups.

Effective on: 3/25/2021

Plantings by the city shall include plantings done by third parties on behalf of the city.

Effective on: 3/25/2021

Plaza means a civic space type designed for passive recreation, civic purposes, and commercial activities, with its character defined primarily by hardscape. Plazas are generally located in activity centers or the nexus of major circulation routes.

Effective on: 3/25/2021

Pollinators mean animals (primarily insect, but sometimes avian or mammalian) that fertilize plants, resulting in the formation of seeds and the fruit surrounding seeds, that humans and other animals rely on to produce nuts and fruits that are essential components of a healthy diet, and that the majority of flowering plant species found world-wide rely on to make the seeds that will become the next generation of plants.

Effective on: 3/25/2021

Straight species means a plant that is not a cultivar nor that has been bred for particular traits.

Effective on: 3/25/2021

Streetscapes shall include the visual elements of a street including the road, adjoining buildings, street furniture, and open spaces that combine to form the street's character; provided, that for the purposes of this article, streetscapes shall not include street trees and shall include roadway medians.

Effective on: 3/25/2021

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-175. Applicability.

The terms and provisions of this article shall be a minimum standard and shall only apply to all new trees and other plants planted by the city, or by a third-party on behalf of the city. Existing trees and other plants shall remain unaffected by this article.

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-176. Invasive plants forbidden.

The city shall not include any invasive plant in any city plantings.

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-177. Native planting requirements.

(a) All new plantings by the city within the following areas shall consist of native plants only:
   (1) Riparian areas;
   (2) The community path;
   (3) The green line extension rail corridor;
   (4) Bioswales;
   (5) Plazas;
   (6) Streetscapes; and
   (7) Other city-owned property;

   provided, however, that the city may plant not more than 50 percent non-native, non-invasive plants in areas (4) through (7) when the city determines that the situation demands flexibility in planting, including for memorialization, aesthetic, geographic, survivability, or other purposes.

(b) In city parks, a minimum of 75 percent of all new plantings planted by the city each year shall be native plants.

(c) A minimum of 50 percent of street trees planted by the city each year shall be native plants, with a goal to increase this percentage in subsequent years.

(d) The city may plant non-native, non-invasive plants in the following areas or for the following purposes; provided, however, that the city shall still make an effort to include native plants:
   (1) Community gardens;
   (2) Flower bulbs planted as part of volunteer initiatives including, but not limited to, the bulb blitz initiative;
   (3) Lawns and athletic fields;
   (4) Holiday, seasonal and annual decorative plantings; and
   (5) Extensive green roofs, provided that the city shall incorporate native plants into their extensive green roof plantings to the extent that doing so is feasible based on the survivability of native plants in such conditions, and will not compromise green building certification or stormwater mitigation requirements.

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-178. Limitations on neonicotinoids.

For the purposes of this article, the city shall, to the extent possible and to the extent such plants are reasonably available, prioritize sourcing native plants that have not been treated with neonicotinoids; provided, that as of January 1, 2028 the city shall not source native plants that have been treated with neonicotinoids.

(Ord. No. 2021-05, 3-25-2021; Ord. No. 2025-24, 12-11-2025)

Effective on: 12/11/2025

Sec. 12-179. Prioritizing straight species.

For the purposes of this article, the city shall, to the extent possible and to the extent such plants are reasonably available, prioritize sourcing native plants that are straight species.

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-180. Reporting requirement.

By December 31 of each year, the director of public space and urban forestry in conjunction with the senior urban forestry and landscape planner, or their designees, in collaboration with any other city department that carries out plantings or oversees plantings carried out by a third-party on behalf of the city, shall publish a report on the city urban forestry website listing the number of trees and plants subject to the requirements of this article planted by the city for the previous fiscal year; provided, however, that each city department that carries out plantings or oversees plantings carried out by a third-party on behalf of the city shall, by December 1 of each year, report such plantings for the previous fiscal year to the director of public space and urban forestry in the manner required in this section. When published on the city website, a copy of this report shall also be forwarded to city council and the urban forestry committee. This report shall at a minimum, provide the following:

(a) A list of each of the property areas listed in section 12-177, except for those exempted pursuant to section 12-177(d), and descriptions for the types of new plantings done that year; and

(b) The percentage of those new plantings that were native plants; and

(c) The percentage of non-native, non-invasive plants planted by the city in areas identified in subsections (4) through (7) of section 12-177(a), and reasons why native plants were not planted in those locations.

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-181. Conflicting regulations repealed.

All regulations that are in conflict with this article, in whole or in part, are hereby repealed to the extent that they are in conflict.

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-182. Severability.

If any portion of this article is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portion shall be deemed a separate provision and shall not affect the validity of the remaining portions of the article.

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021

Sec. 12-183. Effective date.

This article shall take effect 60 days after it is enacted by the city; provided, however, that this article shall not apply to any plantings carried out pursuant to existing contracts, invitations to bid, or designs completed prior to the effective date of this article.

(Ord. No. 2021-05, 3-25-2021)

Effective on: 3/25/2021